THE CITY OF COLORADO SPRINGS

REQUEST FOR PROPOSAL

Services

R26-091MZ

Date Issued: October 8, 2026

PARKS ON-CALL MOWING SERVICES
THE CITY OF COLORADO SPRINGS

The City of Colorado Springs requests Time and Materials (T&M) proposals, as detailed in this Request for Proposal (RFP), for Parks On-Call Mowing Services.

This RFP is posted to Rocky Mountain E-Purchasing BidNet Direct and the City of Colorado Springs' Procurement Services Website. It is available for all vendors free of charge, following free registration, at the Rocky Mountain E-Purchasing BidNet Direct website.

SUBMITTALS FOR THIS PROJECT WILL ONLY BE ACCEPTED ON THE ROCKY MOUNTAIN E-PURCHASING BIDNET DIRECT PLATFORM.

Please login to the following website to register (Free Registration) to submit a bid for this project. All required documents will be uploaded to the website.

https://www.bidnetdirect.com/

BIDNET Support

800-835-4603

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SECTION I – PROPOSAL INFORMATION

1.0 PROPOSAL INFORMATION

Section I provides general information to potential Offerors, such as proposal submission instructions and other similar administrative elements. This RFP is available on BidNet (www.bidnetdirect.com). All addenda or amendments shall be issues through BidNet and may not be available through any other source.

1.1 RFP SCHEDULE OF EVENTS

The upcoming schedule of events is as follows:

Event	**Date**
Issue Request for Proposal	October 8, 2026
Pre-Proposal Conference	October 15, 2026 1:00PM MDT

We will hold a pre-proposal conference via Microsoft Teams. This meeting is not mandatory. However, all Offerors are encouraged to attend. Please use the link below to attend the meeting:

Microsoft Teams meeting
Join: https://teams.microsoft.com/meet/284506648541024?p=9qrDfElcrBhwDrePFO
Meeting ID: 284 506 648 541 024
Passcode: xr9tm6CT

Need help? | System reference
Dial in by phone
+1 720-617-3426,,386512189# United States, Denver

Cut Off Date for Questions	October 22, 2026 1:00PM MDT

Questions about the RFP must be directed to Mike Zeller, at the following email address: michael.zeller@coloradosprings.gov. A written response to any inquiry may be provided in the form of an Amendment to the solicitation. See 1.7 Amendments. Questions must be received no later than 1:00PM MDT October 22, 2026.

Requests for information or support shall be addressed to:

Contract Point of Contact, Email Address

DO NOT CONTACT ANY OTHER INDIVIDUAL AT THE CITY OF COLORADO SPRINGS REGARDING THIS SOLICITATION.

The only acceptable method of submitting questions is via email to the Contracting Specialist named above. Faxes, email or physical mail delivery are not acceptable.

Proposal Due Date	November 5, 2026 2:00PM MDT
Interviews (if applicable)	TBD

Award of Contract	EST November 2026
Notice to Proceed	EST December 2026

1.2 SUBMISSION OF PROPOSALS

Proposals are to be submitted electronically on the BidNet Website (www.bidnetdirect.com). Please review the submission requirements *well in advance* of submission date and time; and allow for ample time to upload each required document.

It is recommended that Offerors begin the submission process at least one (1) day in advance of the proposal deadline.

Offerors are solely responsible to ensure their bid documents are uploaded and submitted correctly, and that a **confirmation number** is obtained upon successful submission.

Customer Support Team for www.bidnetdirect.com can be reached 1-800-835-4603.

1.3 NUMBER OF COPIES

One electronic proposal is to be submitted electronically on the BidNet Website (www.bidnetdirect.com).

1.4 SPECIAL TERMS

Please note the following definitions of terms as used herein:

The term “City” means the City of Colorado Springs.

The term “Contractor” or “Consultant” means the Offeror whose offer is accepted and is awarded the contract to provide the products or services specified in the RFP.

The term “Offer” means the proposal.

The term “Offeror” means the person, firm, or corporation that submits a formal proposal or offer and that may or may not be successful in being awarded the contract.

The term “Project” refers to Parks On-Call Mowing Services.

The term “Request for Proposal” or “RFP” means this solicitation of a formal, negotiable proposal/offer. Any offer that is accepted will be the offer that is deemed by the City of Colorado Springs to be most advantageous in terms of the criteria designated in the RFP.

1.5 RFP OBJECTIVE

The objective of this RFP is to provide sufficient information to enable qualified Offerors to submit written proposals to the City of Colorado Springs. The RFP is not a contractual offer or commitment to purchase products or services. The Offeror may present options and variables to the scope while still meeting the minimum requirements of this solicitation. Innovative proposals/solutions are encouraged and considered in the selection and/or award.

All information included in proposals must be legible. Any and all corrections and or erasures must be initialed by Offeror. Each proposal shall be accompanied by a cover letter signed by an authorized representative of the Offeror. The contents of the proposal submitted by the successful Offeror may become part of any contract awarded as a result of this solicitation.

1.6 CONFIDENTIAL OR PROPRIETARY INFORMATION

If an Offeror believes that parts of an offer are confidential, then the Offeror must so specify. The Offeror must include in bold letters the term “CONFIDENTIAL” on that part of the offer which the Offeror believes to be confidential. The Offeror must submit in writing specific detailed reasons, including any relevant legal authority, stating why the Offeror believes the material to be confidential. Vague and general claims as to confidentiality will not be accepted. The City of Colorado Springs will be the sole judge as to whether a claim is acceptable. Decisions regarding the confidentiality of information will be made when requests are made to make the information public. All offers and parts of offers, which are not marked as confidential, will automatically be considered public information after the contract is awarded. The successful offer may be considered public information even though parts are marked confidential.

1.7 AMENDMENTS

Amendments to this RFP may be issued at any time prior to the time set for receipt of proposals. Offerors are required to acknowledge receipt of any amendments issued to this RFP by returning a signed copy of each amendment issued. Signed copies of each amendment must be received on or before the time set for receipt of offers.

The City of Colorado Springs will post all amendments on the BidNet Website (www.bidnetdirect.com). It is the Offeror's responsibility to check the website for posted amendments or contact the Contracts Specialist listed to confirm the number of amendments which have been issued.

1.8 WITHDRAWAL OR MODIFICATION OF OFFERS

Any Offeror may modify or withdraw an offer in writing at any time prior to the deadline for submission of an offer.

1.9 ACCEPTANCE

Any offer received and not withdrawn shall be considered an offer, which may be accepted by the City of Colorado Springs based on initial submission without discussions or negotiations.

By submitting an offer in response to this solicitation, the Offeror agrees that any offer it submits may be accepted by the City of Colorado Springs at any time within 90 calendar days from the date of submission deadline.

The City of Colorado Springs reserves the right (a) to reject any or all offers,(b) to waive informalities and minor irregularities in offers received, and/or (c) to accept any portion of an offer if deemed in the best interest of the City of Colorado Springs. Failure of the Offeror to provide in its offer any information requested in the RFP may result in rejection of the offer for non-responsiveness.

1.10 PROPOSAL PREPARATION COST

The cost of proposal preparation is not a reimbursable cost. Proposal preparation shall be at the Offeror's sole expense and is the Offeror's total and sole responsibility.

1.11 AWARD

The City of Colorado Springs may make multiple award, using the evaluation criteria listed in this RFP, to determine the best value, considering all factors and criteria in the proposals submitted. Best value means the expected outcome of an acquisition that, in the City's estimation, provides the greatest overall benefit in response to the requirements detailed in the RFP. The City of Colorado Springs reserves the right to reject any or all offers and to not make an award.

1.12 PERFORMANCE PERIOD

The performance period for the project detailed in this RFP will be established as follows:

NTP – December 31, 2031

You may submit to michael.zeller@coloradosprings.gov updated rate sheets in January of 2028, 2029, 2030 and 2031 for review and approval by Parks Staff. If approved the new rates will begin on January 1 of 2028, 2029, 2030 and 2031. If not approved current rates will apply.

1.13 DEBRIEFING

Offerors not selected may request a debriefing on the selection process as well as discussion of the strengths and weaknesses of their proposal upon receipt of notification that their offer was not selected.

A debriefing may be scheduled by contacting the Contracts Specialist listed above. The Contracts Specialist must receive a written request for debriefing no later than ten (10) calendar days after issuance of a notification that the Offeror's offer was not selected.

1.14 SUBSTANTIVE PROPOSALS

By responding to this RFP, the Offeror certifies (a) that Offeror's proposal is genuine and is not made in the interest of, or on behalf of, an undisclosed person, firm, or corporation; (b) that Offeror has not directly or indirectly induced or solicited any other Offerors to put in a false or sham proposal; (c) that Offeror has not solicited or induced any other person, firm, or corporation to refrain or abstain from proposing an offer or proposal; (d) that Offeror has not sought by collusion to obtain for themselves any advantage over any other Offerors or over the City of Colorado Springs; and (e) that Offeror has not violated or caused any person to violate, and shall not violate or cause any person to violate, the City's Code of Ethics contained in Article 3, of Chapter 1 of the City Code and in the City's Procurement Rules and Regulations.

1.15 OFFEROR'S QUALIFICATIONS

Each Offeror must complete Exhibit 1 – Qualification Statement.

No contract will be awarded to any Offeror who is in arrears to the City, upon any debt or contract, or who is in default, in any capacity, upon any obligation to the City or is deemed to be irresponsible or unreliable by the City based on past performance.

1.16 NON-COLORADO ENTITIES

If Offeror is a foreign entity, Offeror shall comply with C.R.S. section 7-90-801, “Authority to transact business or conduct activities required,” and section 7-90-802, “Consequences of transacting business or conducting activities without authority.”

Before or at the time that the contract is awarded to an entity organized or operating outside the State of Colorado, such entity shall obtain authorization to do business in the State of Colorado, designate a place of business herein, and appoint an agent for service of process.

Such entity must furnish the City of Colorado Springs with a certificate from the Secretary of the State of Colorado to the effect that a certificate of authority to do business in the State of Colorado has been issued by that office and is still valid. The entity shall also provide the City with a certified copy of the designation of place of business and appointment of agent for service of process from the Colorado Secretary of State, or a letter from the Colorado Secretary of State that such designation of place of business and agent for service of process has been made.

1.17 PROCUREMENT RULES AND REGULATIONS

All projects advertised by the City of Colorado Springs are solicited in accordance with the City's Procurement Rules and Regulations. The City's Procurement Rules and Regulations can be reviewed and/or downloaded from the City website https://www.coloradosprings.gov. The Contracts Specialist may also provide a soft copy of the Rules and Regulations upon request. Any discrepancies regarding conflicting statements, decisions, irregularities, clauses, or specifications will be rectified utilizing the City’s Procurement Rules and Regulations, when applicable. It is the Offeror’s responsibility to advise the Contracts Specialist listed in this RFP of any perceived discrepancies prior to the date and time the offer is due.

1.18 FAIR TREATMENT OF OFFERORS

The City Procurement Services Division shall be responsible for ensuring the procurement of products, commodities, and services in a manner that affords all responsible businesses a fair and equal opportunity to compete. If an Offeror believes that a procurement is not conducted in a fair and equitable manner, the Offeror is encouraged to inform the City Procurement Services Manager as soon as possible.

1.19 ORDER OF PRECEDENCE

Any inconsistency in this solicitation shall be resolved by giving precedence in the following order:

A. Sections I-IV of this Solicitation
B. Statement of Work
C. Other Appendices, Schedules, Exhibits, or Attachments

1.20 SALES TAX

The successful Offeror, if awarded a contract, shall apply to the Colorado Department of Revenue for a tax-exempt certificate for this project. The certificate does not apply to City of Colorado Springs Sales and Use Tax which shall be applicable and should be included in all proposals. The tax-exempt project number and the exemption certificate only apply to County, PPRTA (Pikes Peak Rural Transportation Authority), and State taxes when purchasing construction and building materials **to be incorporated into this project**.

Furthermore, the exemption **does not** include or apply to the purchase or rental of equipment, supplies or materials that **do not become a part of the completed project or structure**. In these instances, the purchase or rental is subject to full taxation at the current taxation rate.

The Offeror and all subcontractors shall include in their Offer City of Colorado Springs Sales and Use Tax on the work covered by the offer, and all other applicable taxes.

Forms and instructions can be downloaded at https://coloradosprings.gov/sales-tax. Questions can be directed to the City Sales Tax Division at (719) 385-5903 or SalesTax@coloradosprings.gov.

Our Registration Numbers are as follows:
City of Colorado Springs
Federal I.D.: 84-6000573
Federal Excise: A-138557
State Sales Tax: 98-03479

1.21 INTERPRETATION OF PLANS AND SPECIFICATIONS

Any change to proposal forms, plans, or specifications prior to the opening of proposals will be issued by the City in the form of an Amendment. Certain individuals may be named in the RFP that have authority to provide information, clarification or interpretation to Offerors prior to opening of proposals. Information obtained from persons other than those named individuals is invalid and shall not be used for proposal purposes.

1.22 COMBINATION OR CONDITIONAL PROPOSALS

If an RFP is issued for projects in combination and separately, the Offeror may submit proposals either on the combination or on separate units of the combination. The City reserves the right to make awards on combination or separate proposals to the advantage of the City. Combination proposals will be considered, only when specified.

1.23 ANTI-COLLUSION AFFIDAVIT

The Offeror by signing their proposal submitted to the City is certifying that the Offeror has not participated in any collusion or taken any action in restraint of free competitive bidding. This statement may also be in the form of an affidavit provided by the City and signed by the Offeror. The original of the signed anti-collusion affidavit, if separately required and provided with the RFP, shall be submitted with the proposal. The proposal will be rejected if it does not contain the completed anti-collusion affidavit.

SECTION II – PROPOSAL CONTENT

2.0 PROPOSAL CONTENT

Section II provides instructions regarding the format and content required for proposals submitted in response to this solicitation.

2.1 PROPOSAL FORMAT

Offeror's written proposal should include concise, but complete, information, emphasizing why the Offeror is best or best qualified to provide the required services. The Offeror's written proposal should include the information in the format outlined below and must be limited to no more than twenty-five (25) pages. **A page shall be defined as 8-1/2" x 11"; single sided, with one inch margins, and a minimum font of Times New Roman 10**. The only exception to the 8-1/2" x 11" paper size is the proposed project schedule. It may be submitted on 11" x 17" paper. Each 11" x 17" page for the schedule shall be counted in the overall page limitations above. Each section of the proposal should be labeled to clearly follow the requirements sections identified in this section of the RFP. The following listed Exhibits must be filled out and returned with the proposal and are not counted against the page limit:

Exhibit 1 Solicitation Qualifications Document
Appendix A Hourly Rate Sheet
Signed Addenda, if applicable

2.2 COVER LETTER

The cover letter shall be no more than three pages. The cover letter shall contain at least the following information.

A. RFP Number and Project Name.
B. Statement that the Offeror is qualified to perform the work.
C. Certification Statement that the information and data submitted are true and complete to the best knowledge of the individual signing the letter.
D. Name, telephone number, email address, and physical address of the individual to contact regarding the proposal.
E. The signature of an authorized principal, partner, or officer of the Offeror.

2.3 PROPOSAL CERTIFICATION

The Offeror must fill out and submit Exhibit 1, Solicitation Qualifications Document, with its Proposal.

2.4 ORGANIZATIONAL BACKGROUND AND OVERVIEW

The Offeror must provide a brief history and overview of its company and its organizational structure, with special emphasis on how this project will fit within that structure. Also include principal place of business location(s), office locations, and size of firm. Financial stability information (annual public reports or private financial statements shall be included in an appendix or under separate cover; private financial information will be kept confidential by the City) may be requested during the proposal evaluation and award process.

2.5 PROPOSAL NARRATIVE/TECHNICAL AND MANAGEMENT APPROACH

In the proposal narrative/technical and management approach section, the Offeror should explain what the Offeror will do and how it will perform if awarded a contract.

2.5.1 TECHNICAL AREA

The Offeror must explain its overall solution, considering the scope of work or statement of work provided. The content must include, but not necessarily be limited to, the following information.

A. Understanding of and Compliance with Technical Requirements

In the Technical Area, the Offeror should address each work area in sufficient detail to demonstrate a clear and full understanding of the work necessary to complete the project. The proposal should not merely parrot the requirements of the RFP. Further, the Offeror should provide evidence of sufficient planning to ensure the work is completed on schedule and within budget. It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions:

1. Does the proposal demonstrate a firm understanding of the requirements and goals of the Statement of Work, as well as industry standards and reasonable expectations for a company in the industry?
2. Does the proposal fully and completely address each requirement and goal of the Statement of Work?
3. Does the proposal provide solutions to indicate that requirements and goals will be met on schedule?
4. Does the technical solution seem realistic?
5. Does it generally appear that the Offeror knows and thoroughly understands the business and the RFP requirements?

B. Project Approach

In the Technical Area, the Offeror should clearly present proposed solutions and indicate that it has performed adequate planning to accomplish project tasks as defined in the Statement of Work. Innovations, efficiencies, and detailed specifics are all encouraged.

The Offeror must at least address the following areas:

1. Schedule Management. Discuss Offeror's approach to schedule management including updating and reporting progress of the work.
2. Quality Control. Discuss Offeror's quality control plan, processes and approach to ensure that the City receives a quality product.
3. Safety. Discuss Offeror's approach and commitment to safety for its workers, the public, and City employees, if services are accomplished on a City site.
4. Potential issues that Offeror foresees with this project and how Offeror would make adjustments if encountered.

It is highly recommended that the Offeror provides sufficient content and detail to answer completely the following questions.

1. Does the proposal include a complete plan to accomplish each requirement, including subcontracting (if applicable)?

2. Does the proposal demonstrate that appropriate and qualified personnel and equipment will be provided to carry out the requirement?
3. Is the proper level of effort directed toward each requirement? Does the level of effort look unrealistically low or unreasonably high?

2.5.2 MANAGEMENT AREA

Offeror must explain its method of managing the work to be performed. The content must include, but no necessarily be limited to, the following information.

A. Program Management Controls

In the Management Area, the Offeror should provide:

1. A plan of operation, to include management of personnel, workload, schedule, and budget
2. An organization chart which demonstrates clear and effective lines of authority, responsibility, and communication for management, supervisory, and technical personnel. The plan should address which job classification or personnel will be assigned to each task and how that determination is made. Basic human resource management concepts should be addressed, including hiring, firing, discipline, incentive plans, etc.
3. If the Offeror plans to subcontract more than 10% of the work, include information on how the Offeror plans to manage its subcontractors.

It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions.

1. Does the proposal address the issues above in sufficient detail to demonstrate a sophisticated and mature management control system?
2. Are program management controls consistent with the technical portion of the proposal, especially regarding schedule and level of effort?
3. Do the plan and controls indicate that the Offeror will obtain, keep, and efficiently utilize high-quality personnel?
4. Does the proposal explain how the Offeror will address corrective actions in case of delays (e.g. expediting materials, additional resources, etc.)?

B. Past Performance/Relevant Experience

In the Management Area, the Offeror should provide at least three references or name contracts demonstrating that it successfully provided services/products that are the same or similar to those required in the RFP. The proposal should adequately explain how the projects were completed on schedule and within budget. It is highly recommended that the Offeror provides sufficient content and detail to answer completely the following questions.

1. Does the proposal include at least three references or past performance citations?
2. Are the references or past performance citations relevant to the requirements of the Statement of Work of the RFP?
3. Does the Offeror explain how they were successful on the projects provided as past performance?
4. Does the Offeror apply the past performance to the City requirement in such a way as to demonstrate added value due to experience?

C. Key Personnel

In the Management Area, resumes must be provided for all personnel considered key, as required by the RFP. Resumes do not count toward the page limit. It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions. Explain how the key personnel were related to the projects cited as relevant past performance.

1. Does the Offeror provide complete resumes, including education, experience, background information, accomplishments, and other pertinent information?
2. Does the Offeror provide resumes for all key personnel, as required by the RFP?
3. Do the resumes demonstrate adequate professional, technical, and management levels to accomplish the work effectively and efficiently?

2.6 PRICE AREA

In the Price Area, the Offeror should provide a detailed breakdown of the price for each year of performance. The price must be all-inclusive and include all unit costs for material, labor, other direct costs (e.g. travel), indirect costs (i.e. overhead and general and administrative costs), and profit/fee. Offers must include sufficient detail to allow insight into the fairness and reasonableness of the price. If the contract type will be Time and Material (T&M) labor categories, labor rates, separated profit, and estimated material costs must be included in detail.

In addition, although price may not be the most important factor, it is still very important to the City of Colorado Springs. The Offeror's pricing must be competitive as compared to the budget amount, market pricing in the industry, and the pricing of other Offerors. It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions.

1. How does the price compare to the industry competition?
2. If low, is it unrealistically low?
3. If high, is there demonstrated added value for the additional cost?
4. Does the Offeror provide general labor rates?
5. Does the Offeror provide equipment array pricing?
6. Does the Offeror provide cost plus markup fixed percentage rates for materials and products?

2.7 PROPOSAL PRESENTATION

Presentation is an important factor. Offerors should provide a highly professional product, which is complete, accurate, easily understood, and effectively presented.

2.8 EXCEPTIONS

All Offerors must complete Exhibit 1, Exceptions Form, found in the Solicitation Qualifications Document, and return it with their proposal. Some terms and conditions are not negotiable. Exceptions may be grounds for rendering the proposal unacceptable without further discussions.

2.9 INSURANCE REQUIREMENTS

All Offerors must complete Exhibit 1, Minimum Insurance Requirements, found in the Solicitation Qualifications Document, and return with their proposal. Lack of responsiveness in this area may be grounds for rendering the proposal unacceptable without further discussions.

SECTION III – EVALUATION FACTORS

3.0 EVALUATION AND AWARD

Section III provides information regarding evaluation criteria and scoring. It also includes information regarding proposal selection and award of the resultant contract.

3.1 EVALUATION CRITERIA

3.1.1 TECHNICAL AREA – UNDERSTANDING OF AND COMPLIANCE WITH TECHNICAL REQUIREMENTS

See Section II – Item 2.5.1A

3.1.2 TECHNICAL AREA – PROJECT APPROACH

See Section II - Item 2.5.1B

3.1.3 MANAGEMENT AREA – PROGRAM MANAGEMENT CONTROLS

See Section II – Item 2.5.2A

3.1.4 MANAGEMENT AREA – PAST PERFORMANCE/RELEVANT EXPERIENCE

See Section II – Item 2.5.2B

3.1.5 MANAGEMENT AREA – KEY PERSONNEL

See Section II – Item 2.5.2C

3.1.6 PRICE/COST AREA – PRICE/COST

See Section II – Item 2.6

3.1.7 PROPOSAL PRESENTATION AREA – PROPOSAL PRESENTATION

See Section II – Item 2.7

3.1.8 EXCEPTIONS AND INSURANCE

See Section II – Items 2.8 and 2.9

3.2 RANKING

A. The order of ranking or importance in the evaluation shall be as follows per grouping:

First: Technical Area
Second: Management Area
Third: Price/Cost Area
Fourth: Proposal Presentation Area

B. Definitions for scoring are as follows and apply to each grouping:

Exceptional – The proposal meets all and exceeds many of the requirements of the RFP to the benefit of the City, and the information provided is of such a nature as to answer all questions without need for further inquiry. There are no corrective actions required, and no compromise of requirements is needed.

Very Good – The proposal meets all and exceeds some of the requirements of the RFP to the benefit of the City, and the information provided is of such a nature as to answer most questions without need for further inquiry. There are no corrective actions required, and no compromise of requirements is needed.

Satisfactory – The proposal meets the requirements of the RFP, and the information provided is of such a nature as to answer many questions without need for further inquiry. There are very few corrective actions required, and no substantive compromise of requirements is needed.

Marginal – The proposal does not meet some of the requirements of the RFP, and the information provided is of such a nature as to require some clarification. There are some corrective actions required, and some non-substantive compromise of requirements is needed.

Unacceptable – The proposal does not meet many of the requirements of the RFP, and the information provided is of such a nature as to require much clarification. There are many corrective actions required, and substantive compromise of requirements is needed.

C. Area Scoring

The score for each area will be determined by multiplying the sum of the criteria in each area by the area evaluation factor. The area evaluation factors are as follows:

Technical Area:	40 Points
Management Area:	35 Points
Price/Cost Area	20 Points
Proposal Presentation:	5 Points
TOTAL	100 Points

D. Final/Overall scoring

The final proposal score will be determined by adding the area scoring. The sum of the area scores will be the final/overall score.

3.3 SELECTION COMMITTEE

A selection committee will review all proposals. Through this process, the City will determine which proposals are acceptable or unacceptable. The City will notify, in writing, the Offerors whose proposals are deemed to be unacceptable. Those Offerors offering proposals deemed to be acceptable by the City will be evaluated by grouping and scored by grouping by the selection committee. This scoring will determine which Offerors are considered to be in the competitive range and may be the basis for an award decision without further steps.

If the selection committee elects not to award based upon evaluation scoring, it may engage in a forced elimination process. To inform this process, it may require oral presentations or interviews with the Offerors considered to be in the competitive range. If oral presentations or interviews are conducted, they may also be scored, or they may simply be considered as information supporting the forced elimination process. The selection committee may request revisions to the proposal from each of the Offerors at the conclusion of the interviews. The intent of the forced elimination process is to reach consensus. The decision will be based on all relevant factors and based upon perception of best value. The final decision may or may not exactly reflect scoring ranking.
The City also reserves the right to request best and final offers from all Offerors at any point in the proposal evaluation process.

3.4 AWARD OF CONTRACT

It is anticipated that there will be negotiations or discussions with Offerors. However, the City reserves the right to award without negotiations or discussions. The City also reserves the right to award a contract not necessarily or merely to the Offeror with the most advantageous price. The City intends to award each grouping to the Offeror that demonstrates the best value to the City and the most substantiated ability to fulfill the requirements contained in this Request for Proposal. A contract or contracts prepared by the City will be finalized and/or negotiated with the successful Offeror(s). In the event a contract cannot be negotiated with the top-ranked Offeror, the City may enter into negotiations with the second highest-ranked Offeror, or the City may decide to call for new proposals. Immediately after the notice of award, the successful Offeror(s) will begin planning in conjunction with the City of Colorado Springs staff (to be designated by the City) to ensure fulfillment of all its obligations. The successful Offeror may be expected to attend regular meetings as required by the City to assist in the preparation for startup.

SECTION IV – RESERVED

SECTION V – EXHIBITS

5.0 EXHIBITS

Exhibit 1 Solicitation Qualifications Document
Exhibit 2 Sample Contract
Exhibit 3 Sample Evaluation Scoresheet
Exhibit 4 Sample SIMD Price Sheet Request
Exhibit 5 Sample Mowing Maps

EXHIBIT 1 SOLICITATION QUALIFICATIONS DOCUMENTS

FOLLOWS THIS PAGE.

SOLICITATION QUALIFICATIONS DOCUMENTS

Please complete all sections of this document including the Solicitation Certification, Representations and Certifications, Qualification Statement, Exceptions, Minimum Insurance Requirements, and Signature Page.

Please submit all completed documents with your bid/ proposal and sign the Minimum Insurance Requirements and Signature Page.

Solicitation:

Solicitation Number:

Firm Name: _____ Date: _____

Address: _____

_____

Federal Tax ID #: _____

Tax Classification:

☐ Sole Proprietorship ☐ Partnership ☐ C Corporation

☐ S Corporation ☐ LLC ☐ Nonprofit

DUNS Number: _____

OFFEROR REPRESENTATIVE

Offeror has appointed the following as the offeror's representative and contact for all questions or clarifications in regard to this offeror.

Name: _____

Telephone: _____

E-mail: _____

SOLICITATION CERTIFICATION

PLACE OF BUSINESS

Company's Principal Place of Business

Does Offeror Have an established office or facility in Colorado Springs? ☐ YES ☐ NO

If Yes, Indicate address below if different from principal place of business.

Year Facility Was Established

Percent of Work to be performed from principal place of business.

Percent of Work to be performed from Colorado Springs Facility

INSURANCE

Indicate your ability to provide a certificate of insurance evidencing the required coverage types and limits specified in Minimum Insurance Requirements Exhibit. (The certificate of insurance must reflect the City of Colorado Springs as an Additional Insured, as applicable.)

Initial Here

Indicate your Ability to Comply with the following requirements:

The City shall be added as an Additional Insured to all liability policies

☐ YES ☐ NO

Your property and liability insurance company is licensed to do business in Colorado

☐ YES ☐ NO

Your property and liability insurance company has an AM best rating of not less than B+ and/or

☐ YES ☐ NO

Worker's Compensation Insurance is carried for all employees and covers work done in Colorado.

☐ YES ☐ NO

Provide the name of your property and liability insurance company here:

FINANCIAL STATEMENTS

☒ Current Financial Statements are not required for this solicitation.

☐ Current Financial Statements are required for this solicitation. Please include financial statements as a separate document with your proposal.

Initial Here

COMPLETED PROPOSAL

Provide the completed and signed proposal. (Proposals must be identified as specified in this RFP document). All required Exhibits are attached.

Initial Here

ACKNOWLEDGE ADDENDUM

Offeror hereby acknowledges receipt of the following amendments, if applicable Offeror agrees that it is bound by all Amendments identified herein.

Addendum #1	*Initial Here*	Dated:
Addendum #2	*Initial Here*	Dated:
Addendum #3	*Initial Here*	Dated:
Additional Addendum, if issued	*Initial Here*	Dated:

REPRESENTATIONS AND CERTIFICATIONS

1. INSURANCE REQUIREMENTS

Offeror shall comply with all insurance requirements and will submit the Insurance Certificates prior to performance start date. If limits are different from the stated amounts, Offeror shall explain variance. Certain endorsements and "additionally insured" statements may require further clarification and specific statements on a project specific basis and should have been described in the Offeror's proposal.

Initial Here #1

2. ETHICS VIOLATIONS

a) The Offeror shall have in place and follow reasonable procedures designed to prevent and detect possible violations described in this clause in its own operations and direct business relationships.
b) Offeror certifies the Offeror has not violated or caused any person to violate, and shall not violate or cause any person to violate, the City's Code of Ethics contained in Article 3, of Chapter 1 of the City Code and in the City's Procurement Rules and Regulations
c) When the Offeror has reasonable grounds to believe that a violation described in this clause may have occurred, the Offeror shall promptly report the possible violation to the City Contracts Specialist in writing.
d) The Offeror must disclose with the signing of this proposal, the name of any officer, director, or agent who is also an employee of the City and any City employee who owns, directly or indirectly, an interest of ten percent (10%) or more in the Offeror's firm or any of its branches.
e) In addition, the Offeror must report any conflict or apparent conflict, current or discovered during the performance of the Contract, to the City Contracts Specialist.
f) The Offeror shall not engage in providing gifts, meals or other amenities to City employees. The right of the Offeror to proceed may be terminated by written notice issued by City Contracts Specialist if Offeror offered or gave a gratuity to an officer, official, or employee of the City and intended by the gratuity to obtain a contract or favorable treatment under a contract.
g) The Offeror shall cooperate fully with the City or any agency investigating a possible violation on behalf of the City. If any violation is determined, the Offeror will properly compensate the City.
h) The Offeror agrees to incorporate the substance of this clause (after substituting "Contractor" for "Offeror") in all subcontracts under this offer.

Initial Here #2

3. COOPERATION WITH OTHER CONTRACTORS

Other City activities/contracts may be in progress or start during the performance of this contract. The Offeror shall coordinate the work harmoniously with the other contractors or City personnel, if applicable.

☐
Initial Here #3

4. INTERNET USE

Should the Offeror require access to City Internet resources in the performance of this requirement, a “Contractor’s Internet Use Agreement” form must be separately signed by each individual having access to the City Network. The completed Contractor’s Internet Use Agreement will be maintained with this agreement. Inappropriate use of the City Network will be grounds for immediate termination of any awarded contact.

☐
Initial Here #4

5. LITIGATION

If awarded a contract, Offeror shall notify the City within five (5) calendar days after being served with a summons, complaint, or other pleading in any matter which has been filed in any federal or state court or administrative agency. The Offeror shall deliver copies of such document(s) to the City's Procurement Services Manager. The term "litigation" includes an assignment for the benefit of creditors, and filings of bankruptcy, reorganization and/or foreclosure.

☐
Initial Here #5

6. CONTRACTOR’S REGISTRATION INFORMATION

Offeror’s firm verifies and states that they are (check all that apply):

☐ Large Business (i.e. do not qualify as a small business or non-profit)

☐ Nonprofit

☐ Small Business

☐ Minority Owned Business/Small Disadvantaged Business

☐ Woman Owned Business

☐ Veteran Owned Business

☐ Service-Disabled Veteran Owned Business

☐ HUBZone Business

Note: The City accepts self-certification for these categories in accordance with Small Business Administration (SBA) standards. The SBA size standards are found on the SBA website https://www.sba.gov/content/am-i-small-business-concern.

☐

Initial Here #6

7. CONTRACTOR PERSONNEL

a) The Offeror shall appoint one of its key personnel as the "Authorized Representative" who shall have the power and authority to interface with the City and represent the Offeror in all administrative matters concerning this proposal and any awarded contract, including without limitation such administrative matters as correction of problems modifications, and reduction of costs.

b) The Authorized Representative shall be the person identified in the Offeror's proposal, unless the Offeror provides written notice to the City naming another person to serve as its Authorized Representative. Communications received by the City Contracts Specialist from the Authorized Representative shall be deemed to have been received from the Offeror.

Name: ☐

Telephone: ☐

E-mail: ☐

☐

Initial Here #7

8. OFFEROR'S CERTIFICATION

The undersigned hereby affirms that:

a) He/She is a duly authorized agent of the Offeror;

b) He/She has read and agrees to the City's standard terms and conditions attached.

c) The offer is presented in full compliance with the collusive prohibitions of the City of Colorado Springs. The Offeror certifies that no employee of its firm has discussed, or

compared the offer with any other offeror or City employee and has not colluded with any other offeror or City employee.

d) The Offeror certifies that it has checked all of its figures, and understands that the City will not be responsible for any errors or omissions on the part of the Offeror in preparing its proposal.

e) By submitting an offer the Offeror certifies that it has complied and will comply with all requirements of local, state, and federal laws, and that no legal requirements have been or will be violated in making or accepting this solicitation.

I hereby certify that I am submitting the proposal based on my company's capabilities to provide quality products and/or services on time.

☐

Initial Here #8

9. OFFEROR CERTIFICATION REGARDING DEBARMENT, SUSPENSION, PROPOSED DEBARMENT, AND OTHER RESPONSIBILITY MATTERS:

1. The Offeror certifies to the best of its knowledge and belief, that (i) the Offeror and/or any of its Principals

   ☐ Are ☐ Are Not

   Presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency.

   ☐ Have ☐ Have Not

   Within a three year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (federal, state, local) contract or subcontract; violation of Federal or state antitrust statutes relation to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statement, tax evasion, or receiving stolen property; and

   ☐ Are ☐ Are Not

   presently indicated for, or otherwise criminally or civilly charged by a governmental entity with commission of any of the offenses enumerated in any paragraphs above.

2. The Offeror shall provide immediate written notice to the City Contracts Specialist if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reasons of changed circumstances.
3. The certification in paragraph 1. above, is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the City, the

City Contracts Specialist may terminate the contract resulting from this solicitation for default. Termination for default may result in additional charges being levied for the costs incurred by the City to initiate activities to replace the awarded Contractor.

Initial Here #9

10. ACCEPTANCE OF CITY CONTRACTS SPECIALIST'S SOLE AUTHORITY FOR CHANGES

Unless otherwise specified in the Contract, the Offeror hereby agrees that any changes to the scope of work, subsequent to the original contract signing, shall be generated in writing and an approval signature shall be obtained from the City Contracts Specialist prior to additional work performance.

Initial Here #10

11. CITY CONTRACTOR SAFETY PROGRAM

The Offeror hereby agrees to adhere to a worker safety program for contractor employees on a City job site or location. By initialing below, the Offeror has reviewed the information and will abide by the City Policy which is available for review:

https://coloradosprings.gov/finance/page/procurement-regulations-and-documents

Initial Here #11

12. ACCEPTANCE OF CITY ENVIRONMENTALLY PREFERRED PURCHASING (EPP) POLICY

The City of Colorado Springs is committed to buying more environmentally preferable goods and services, as long as they meet performance needs, are available within a reasonable time and at a reasonable cost. The Offeror hereby acknowledges review of this policy by initialing below.

https://coloradosprings.gov/finance/page/procurement-regulations-and-documents

Initial Here #12

13. FRAUD, WASTE, AND ABUSE

Everyone has a duty to report any suspected unlawful act impacting the City of Colorado Springs operations and its enterprises. Anyone who becomes aware of the existence or apparent existence of fraud, waste, and abuse in City of Colorado Springs is encouraged to report such matters to the City Auditor's Office in writing or on the telephone hotline 385-2387 (ADTR). Written correspondence can be mailed to:

City Auditor

P.O. Box 2241

Colorado Springs CO 80901

Or via email FraudHotline@ColoradoSprings.gov. Any of these mechanisms allow for anonymous reporting. For more information, please go to the website https://coloradosprings.gov/cityfraud.

Initial Here #13

QUALIFICATION STATEMENT

This statement will provide information which will enable the City to evaluate the qualifications of your firm and staff with regard to the requirements of this solicitation. Please complete this form in its entirety. If a request in the Qualification Statement is contained in the proposal, indicate the section in the proposal where that information can be found.

1. **TYPE OF LICENSE(S) HELD**

2. **TYPE OF SERVICE TO BE PROVIDED FOR THIS SOLICITATION**

3. **NUMBER OF YEARS IN BUISNESS**

4. **FIRM HSITORY & STAFF QUALIFICATIONS**

   In your proposal provide a brief history of your firm, staff size, and experience. Submit a resume for the project manager and each key personnel assigned to this project.

5. **WHAT OTHER NAME(S) HAS YOUR COMPANY OPERATED UNDER**

   ☐ My Firm has not operated under any other names

6. **HAVE YOU OR YOUR FIRM EVER FAILED TO COMPELTE ANY WORK AWARDED TO YOU?**

   ☐ Yes ☐ No

   If Yes, Please Explain

7. **HAS ANY OFFICER OF PARTNER OF YOUR ORGANIZATION EVER BEEN AN OFFICER OR PARTNER OF ANOTHER ORGANIZATION THAT FIALED TO COMPLETE A CONTRACT WITHIN THE LAST FIVE (5) YEARS?**

☐ Yes ☐ No

If Yes, Please Explain

8. **HAS YOUR FIRM OR ANY PARTNERS OR OFFICERS EVER BEEN INVOVLED IN ANY BANKRUPTCY ACTION?**

☐ Yes ☐ No

If Yes, Please Explain

9. **ARE YOU PRESENTLY INVOVLED IN ANY LITIGATION WITH ANY GOVERNMENT AGENCY?**

☐ Yes ☐ No

If Yes, Please Explain Type, Kind, Plaintiff, Defendant, etc. and state the current status:

10. **BANK REFERENCE**

Bank Name:	
Address:	
Contact:	
Phone #:	
E-mail:	

11. SIMILAR PROJECTS

List Three similar projects (local or state-wide) from the last five (5) years. Include the location of the project, size of project (contract amount), contract name and information. NOTE: Detailed information on these projects may also be requested in the solicitation package

☐ Indicate here if this information is provided within your proposal and Identify where in the proposal it is located.

1. Company:

   Location of Project:

   Contract Amount:

   Contract Period of Performance:

   Company Representative:

   Representative's Title:

   Representative's Address:

   Representative's Phone #:

   Representative's E-mail:

   Brief Description of service/goods provided and how your firm was successful carrying out the scope of work of the contract.

2. Company:

   Location of Project:

   Contract Amount:

   Contract Period of Performance:

   Company Representative:

Representative's Title:

Representative's Address:

Representative's Phone #:

Representative's E-mail:

Brief Description of service/goods provided and how your firm was successful carrying out the scope of work of the contract.

3. Company:

Location of Project:

Contract Amount:

Contract Period of Performance:

Company Representative:

Representative's Title:

Representative's Address:

Representative's Phone #:

Representative's E-mail:

Brief Description of service/goods provided and how your firm was successful carrying out the scope of work of the contract.

12. SIMILAR PROJECTS CURRENTLY UNDER CONTRACT

list three projects currently under contract and in progress (local or state-wide) from the last five (5) years. Include the location of the project, size of project (contract amount), contract name and information. NOTE: Detailed information on these projects may also be requested in the solicitation package

☐ Indicate here if this information is provided within your proposal and Identify where in the proposal it is located.

1. Company:

   Location of Project:

   Contract Amount:

   Contract Period of Performance:

   Company Representative:

   Representative's Title:

   Representative's Address:

   Representative's Phone #:

   Representative's E-mail:

   Brief Description of service/goods provided.

2. Company:

   Location of Project:

   Contract Amount:

   Contract Period of Performance:

   Company Representative:

Representative's Title:

Representative's Address:

Representative's Phone #:

Representative's E-mail:

Brief Description of service/goods provided.

3. Company:

Location of Project:

Contract Amount:

Contract Period of Performance:

Company Representative:

Representative's Title:

Representative's Address:

Representative's Phone #:

Representative's E-mail:

Brief Description of service/goods provided.

13. ADDITIONAL QUALIFICATION REQUIREMENTS

☐ There are no additional qualification requirements for this solicitation.

☒ There are additional qualification requirements as follows:

EXCEPTIONS

Please Indicate below if there are any exceptions taken to any of the terms, conditions, or specifications of these proposal documents or contract.

If there are exceptions taken to any of the terms, conditions, or specifications of the proposal document or contract, they must be clearly stated on an additional document attached to this exhibit and returned with your proposal.

NOTE: All potential Offerors are hereby advised that exceptions taken may be considered during the evaluation phase which may affect the final scoring of proposals. Offerors stipulating that the City must use their contract or agreement may be determined non-responsive and their Proposal determined unacceptable.

Please indicate below:

☐ My Firm has no exceptions.

☐ My Firm does have exceptions. (Attach Exceptions to this exhibit)

MINIMUM INSURANCE REQUIREMENTS

The following listed minimum insurance requirements shall be carried by all contractors and consultants unless otherwise specified in the City's solicitation package, Special Provisions or Standard Specifications.

1. Commercial General Liability for limits not less than $1,000,000 combined single limit for bodily injury and property damage for each occurrence. Coverage shall include blanket contractual, broad form property damage, products and completed operations.

2. Workers' Compensation and Employers Liability as required by statute. Workers' Compensation and Employers Liability coverage is to be carried for a minimum limit of $1,000,000.

3. Automobile Liability covering any auto (including owned, hired, and non-owned autos) with a minimum of $1,000,000 each accident combined single limit.

Except for workers' compensation and employer's liability insurance and Professional Liability, the City of Colorado Springs must be named as an additional insured. Certificates of Insurance must be submitted before commencing the work and provide 30 days' notice prior to any cancellation, non-renewal, or material changes to policies required under the contract.

Name of Company

Signature

Date

SIGNATURE PAGE

By signing below, the Offeror certifies that no person or firm other than the Offeror or as otherwise indicated has any interest whatsoever in this offer or any Contract that may be entered into as a result of this offer and that in all respects the offer is legal and firm, submitted in good faith without collusion or fraud.

The undersigned additionally declares that it has carefully examined the Bid/Proposal information and the complete Solicitation prior to submitting a Bid / Proposal. The Offeror's signature will be considered the Offeror's acknowledgement of understanding and ability to comply with all items in the solicitation.

The undersigned acknowledges and understands the terms, conditions, Specifications and all Requirements contained and/or referenced and are legally authorized by the Offeror to make the above statements or representations.

Signature

Name (Printed)

Company Name

Title

Date

EXHIBIT 2 SAMPLE CONTRACT

SERVICES CONTRACT

Contract Number:		Project Name/Title	
Vendor/Contractor			
Contact Name:		Telephone:	
Email Address:			
Address:			
City Contracting Specialist		City Dept Rep	
NOT TO EXCEED Contract Amount:		City Account #	
Contract Type:		Period of Performance	

1. INTRODUCTION

THIS FIXED UNIT PRICE INDEFINITATE DELIVERY INDEFINATE QUANTITY (IDIQ) CONTRACT ("Contract") is made and entered into this ___ day of_____, 2025 by and between the City of Colorado Springs, a Colorado municipal corporation and home rule city, in the County of El Paso, State of Colorado, (the "City"), and _____ (the "Contractor").

THE CITY AND THE CONTRACTOR HEREBY AGREE AS FOLLOWS:

The City has heretofore prepared the necessary Contract Documents for the following Activity:

The Contractor did submit to the City the Contractor's written offer and proposal to do the work therein described under the terms and conditions therein set forth and furnish all materials, supplies, labor, services, transportation, tools, equipment, and parts for said work in strict conformity with the accompanying Contract Documents, which are attached hereto and incorporated herein by this reference, including the following:

1. This Contract Document
2. Appendix A – Additional Terms and Conditions
3. Appendix B – Contractor's Proposal
4. Appendix C – Statement of Work
5. Appendix D – Project Schedule
6. Appendix E – Insurance Requirements

2. COMPENSATION/CONSIDERATION

THIS FIXED UNIT PRICE INDEFINITE DELIVERY/INDEFINITE QUANTITY CONTRACT is established at the Not to Exceed amount of or $1,500,000.00 per year. This contract does not obligate or award contract values, funds, or work. All value; funds and work will be awarded through

Task Orders issued under this IDIQ Contract. It is anticipated that the total value of Task Orders will not exceed $1,500,000.00 per year. There is no guaranteed minimum amount for the cumulative value of the Task Orders.

Subject to the terms and conditions of the Contract Documents, Contractor agrees to furnish all materials and to perform all work as set forth in its proposal and as required by the Contract Documents.

All pricing is in accordance with the fixed unit prices found in Schedule A – Hourly Rates, as proposed by the Contractor. At no time shall the total obligation of the City exceed the not to exceed amount of this Contract.

3. TERM OF CONTRACT

The performance period for the project detailed in this RFP will be established as follows:

NTP – December 31, 2031

You may submit to michael.zeller@coloradosprings.gov updated rate sheets in January of 2028, 2029, 2030 and 2031 for review and approval by Parks Staff. If approved the new rates will begin on January 1 of 2028, 2029, 2030 and 2031. If not approved current rates will apply.

4. INSURANCE

The Contractor shall provide and maintain acceptable Insurance Policy(s) consistent with the Minimum Insurance Requirements attached as Appendix E, which includes Property, Liability and Professional Errors and Omissions coverage, and as otherwise listed in Appendix E. The City of Colorado Springs shall be reflected as an additional insured on the Property and Liability policy(s).

Further, Contractor understands and agrees that Contractor shall have no right of coverage under any existing or future City comprehensive, self, or personal injury policies. Contractor shall provide insurance coverage for and on behalf of Contract that will sufficiently protect Contractor, or Contractor's agents, employees, servants or other personnel, in connection with the services which are to be provided by Contractor pursuant to this Contract, including protection from claims for bodily injury, death, property damage, and lost income. Contractor shall provide worker's compensation insurance coverage for Contractor and all Contractor personnel. Contractor shall file applicable insurance certificates with the City and shall also provide additional insurance as indicated in this Contract. ***A CURRENT CERTIFICATE OF INSURANCE IS REQUIRED PRIOR TO COMMENCEMENT OF SERVICES LISTING THE CITY AS ADDITIONALLY INSURED.***

5. RESPONSIBILITY OF THE CONTRACTOR

A. The Contractor shall be responsible for the professional quality, technical accuracy, and the coordination of all Scope of Work services furnished by the Contractor under this Contract. The Contractor shall, without additional compensation, correct or revise any errors or deficiencies in services provided under this Contract to the satisfaction of the City.

B. The City's review, approval of, acceptance of, or payment for the services required under this Contract shall not be construed to operate as a waiver of any rights under this Contract or of any cause of action arising out of the performance of this Contract, and the Contractor shall

be and remain liable to the City for any and all damages to the City caused by the Contractor's negligent performance of any of the services furnished under this Contract.

C. The rights and remedies of the City provided for under this Contract are in addition to any other rights and remedies provided by law.

D. If the Contractor is comprised of more than one legal entity, each such entity shall be jointly and severally liable hereunder.

6. WORK OVERSIGHT

A. The extent and character of the work to be done by the Contractor shall be subject to the general approval of the City's delegated Project Manager.

B. If any of the work or services being performed does not conform with Contract requirements, the City may require the Contractor to perform the work or services again in conformity with Contract requirements, at no increase in Contract amount. When defects in work or services cannot be corrected by re-performance, the City may (1) require the Contractor to take necessary action to ensure that future performance conforms to Contract requirements and (2) reduce the Contract price to reflect the reduced value of the work or services performed.

C. If the Contractor fails to promptly perform the defective work or services again or to take the necessary action to ensure future performance is in conformity with Contract requirements, the City may (1) by Contract or otherwise, perform the services and charge to the Contractor any cost incurred by the City that is directly related to the performance of such work or service or (2) terminate the Contract for breach of contract.

7. SUBCONTRACTORS, ASSOCIATES, AND OTHER CONTRACTORS

A. Any subcontractor, outside associates, or other contractors used by the Contractor in connection with Contractor's work under this Contract shall be limited to individuals or firms that are specifically identified by the Contractor in the Contractor's proposal and agreed to by the City. The Contractor shall obtain the City's Project Manager's written consent before making any substitution of these subcontractors, associates, or other contractors.

B. The Contractor shall include a flow down clause in all of its subcontracts, agreements with outside associates, and agreements with other contractors. The flow down clause shall cause all of the terms and conditions of this Contract, including all of the applicable parts of the Contract Documents, to be incorporated into all subcontracts, agreements with outside associates, and agreements with other contractors. The flow down clause shall provide clearly that there is no privity of contract between the City and the Contractor's subcontractors, outside associates, and other contractors.

8. KEY PERSONNEL

The key personnel listed in the proposal and/or below will be the individuals used in the performance of the work. If any of the listed key personnel leave employment or are otherwise not utilized in the performance of the work, approval to substitute must be obtained by the Contractor from the City's Project Manager. Any substitute shall have the same or a higher standard of qualifications that the key personnel possessed at the time of Contract award.

9. START AND CONTINUANCE OF WORK

It is further agreed that the Contractor will start work promptly and continue to work diligently until this Contract is completed.

10. APPROPRIATION OF FUNDS

This Contract is expressly made subject to the limitations of the Colorado Constitution and Section 7-60 of the Charter of the City of Colorado Springs. Nothing herein shall constitute, nor be deemed to constitute, the creation of a debt or multi-year fiscal obligation or an obligation of future appropriations by the City Council of Colorado Springs, contrary to Article X, § 20, Colo. Const., or any other constitutional, statutory, or charter debt limitation. Notwithstanding any other provision of this Contract, with respect to any financial obligation of the City which may arise under this Agreement in any fiscal year after the year of execution, in the event the budget or other means of appropriation for any such year fails to provide funds in sufficient amounts to discharge such obligation, such failure (i) shall act to terminate this Contract at such time as the then-existing and available appropriations are depleted, and (ii) neither such failure nor termination shall constitute a default or breach of this Contract, including any sub-agreement, attachment, schedule, or exhibit thereto, by the City. As used herein, the term “appropriation” shall mean and include the due adoption of an appropriation ordinance and budget and the approval of a Budget Detail Report (Resource Allocations) which contains an allocation of sufficient funds for the performance of fiscal obligations arising under this Contract.

11. CHANGES

The Contractor and the City agree and acknowledge as a part of this Contract that no change order or other form or order or directive may be issued by the City which requires additional compensable work to be performed, which work causes the aggregate amount payable under the Contract to exceed the amount appropriated for this Contract as listed above, unless the Contractor has been given a written assurance by the City that lawful appropriations to cover the costs of the additional work have been made or unless such work is covered under a remedy-granting provision of this Contract. The Contractor and the City further agree and acknowledge as a part of this Contract that no change order or other form or order or directive which requires additional compensable work to be performed under this Contract shall be issued by the City unless funds are available to pay such additional costs, and, regardless of any remedy-granting provision included within this Contract, the Contractor shall not be entitled to any additional compensation for any change which increases or decreases the Contract completion date, or for any additional compensable work performed under this Contract, and expressly waives any rights to additional compensation, whether by law or equity, unless, prior to commencing the additional work, the Contractor is given a written change order describing the change in Contract completion date or the additional compensable work to be performed, and setting forth the amount of compensation to be paid, and such change order is signed by the authorized City representative, as defined below. The amount of compensation to be paid, if any, shall be deemed to cover any and all additional, direct, indirect or other cost or expense or profit of the Contractor whatsoever. It is the Contractor's sole responsibility to know, determine, and ascertain the authority of the City representative signing any change order under this Contract.

No change, amendment, or modification to this Contract shall be valid unless duly approved and issued in writing by the City of Colorado Springs Procurement Services Division. The City shall not be liable for any costs incurred by the Contractor resulting from work performed for changes not issued in writing by the City of Colorado Springs Procurement Services Division.

The following personnel are authorized to sign changes, amendments, or modifications to this Contract.

The Department Manager: up to $149,999.99
The City of Colorado Springs Deputy Chief of Staff: $150,000.00 to $499,999.99
The City of Colorado Springs Chief of Staff: $500,000.00 to $1,999,999.99
The Mayor of Colorado Springs: Unlimited

12. ASSIGNMENT

No assignment or transfer by the Contractor of this Contract or any part thereof or of the funds to be received thereunder by the Contractor will be recognized unless such assignment has had the prior written approval of the City and the surety has been given due notice of such assignment. Such written approval by the City shall not relieve the Contractor of the obligations under the terms of this Contract. In addition to the usual recitals in assignment contracts, the following language must be included in the assignment:

It is agreed that the funds to be paid to the assignee under this assignment are subject to a prior lien for services rendered or materials supplied for the performance of the work called for in said contract in favor of all persons, firms, or corporations rendering such services or supplying such materials.

13. CHOICE OF LAW

This Contract is subject to and shall be interpreted under the law of the State of Colorado, and the Charter, City Code, Ordinances, Rules and Regulations of the City of Colorado Springs, Colorado, a Colorado home rule city. Court venue and jurisdiction shall be exclusively in the Colorado District Court for El Paso County, Colorado. The Parties agree that the place of performance for this Contract is deemed to be in the City of Colorado Springs, El Paso County, State of Colorado. The Contractor shall ensure that the Contractor and the Contractor's employees, agents, officers and subcontractors are familiar with, and comply with, applicable Federal, State, and Local laws and regulations as now written or hereafter amended.

14. WORKERS' COMPENSATION INSURANCE

Contractor shall take out and maintain during the Period of Performance, Colorado Worker's Compensation Insurance for the Contractor and all employees of the Contractor. If any service is sublet by the Contractor, the Contractor shall require the subcontractor to provide the same coverage for the subcontractor and subcontractor's employees. Workers' Compensation Insurance shall include occupational disease provisions covering any obligations of the Contractor in accord with the provisions of the Workers' Compensation Act of Colorado.

15. INDEMNIFICATION

Contractor agrees that the Contractor shall indemnify, defend and hold harmless the City, its officers, employees and agents, from and against any and all loss, damage, injuries, claims, cause or causes of action, or any liability whatsoever resulting from, or arising out of, or in connection with the Contractor's obligations or actions under this Contract caused by any willful or negligent error, omission or act or a failure to observe any applicable standard of care by the Contractor or any person employed by it or anyone for whose acts the Contractor is legally liable. In consideration of the award of this Contract, to the extent damages are covered by insurance,

the Contractor agrees to waive all rights of subrogation against the City, its subsidiary, parent, associated and/or affiliated entities, successors, or assigns, its elected officials, trustees, employees, agents, and volunteers for losses arising from the work performed by the Contractor for the City. The indemnification obligation shall survive the expiration or termination of this Contract

16. INDEPENDENT CONTRACTOR

In the performance of the Contractor's obligations under this Contract, it is understood, acknowledged and agreed between the parties that the Contractor is at all times acting and performing as an independent contractor, and the City shall neither have nor exercise any control or direction over the manner and means by which the Contractor performs the Contractor's obligations under this Contract, except as otherwise stated within the Contract terms. The City shall not provide any direction to the Contractor on the work necessary to complete the project. Contractor understands that it is an independent contractor responsible for knowing how to perform all work or tasks necessary to complete project. The Contractor understands and agrees that the Contractor and the Contractor's employees, agents, servants, or other personnel are not City employees. The Contractor shall be solely responsible for payment of salaries, wages, payroll taxes, unemployment benefits or any other form of compensation or benefit to the Contractor or any of the Contractor's employees, agents, servants or other personnel performing services or work under this Contract, whether it is of a direct or indirect nature. Further in that regard, it is expressly understood and agreed that for such purposes neither the Contractor nor the Contractor's employees, agents, servants or other personnel shall be entitled to any City payroll, insurance, unemployment, worker's compensation, retirement or any other benefits whatsoever.

17. APPLICABLE LAW AND LICENSES

In the conduct of the services or work contemplated in this Contract, the Contractor shall ensure that the Contractor and all subcontractors comply with all applicable state, federal and City and local law, rules and regulations, technical standards or specifications. The Contractor shall qualify for and obtain any required licenses prior to commencement of work.

18. PRIOR AGREEMENTS

This is a completely integrated Contract and contains the entire agreement between the parties. Any prior written or oral agreements or representations regarding this Contract shall be of no effect and shall not be binding on the City. This Contract may only be amended in writing, and executed by duly authorized representatives of the parties hereto.

19. INTELLECTUAL PROPERTY

The Parties hereby agree, and acknowledge, that all products, items writings, designs, models, examples, or other work product of the Contractor produced pursuant to this Contract are works made for hire, and that the City owns, has, and possesses any and all ownership rights and interests to any work products of the Contractor made under this Contract, including any and all copyright, trademark, or patent rights, and that compensation to the Contractor for Agreement and acknowledgment of this intellectual property right section of this Contract is included in any compensation or price whatsoever paid to the Contractor under this Contract. It is the intent of the parties that the City shall have full ownership and control of the Contractor's work products produced pursuant to this Contract, and the Contractor specifically waives and assigns to the City all rights which Contractor may have under the 1990 Visual Artists Rights Act, federal, and state

law, as now written or later amended or provided. In the event any products, items writings, designs, models, examples, or other work product produced pursuant to this Contract is deemed by a court of competent jurisdiction not to be a work for hire under federal copyright laws, this intellectual property rights provision shall act as an irrevocable assignment to the City by the Contractor of any and all copyrights, trademark rights, or patent rights in the Contractor's products, items writings, designs, models, examples, or other work product produced pursuant to this Contract, including all rights in perpetuity. Under this irrevocable assignment, the Contractor hereby assigns to the City the sole and exclusive right, title, and interest in and to the Contractor's products, items writings, designs, models, examples, or other work product produced pursuant to this Contract, without further consideration, and agrees to assist the City in registering and from time to time enforcing all copyrights and other rights and protections relating to the Contractor's products, items writings, designs, models, examples, or other work product in any and all countries. It is the Contractor's specific intent to assign all right, title, and interest whatsoever in any and all copyright rights in the Contractor's products, items writings, designs, models, examples, or other work product produced pursuant to this Contract, in any media and for any purpose, including all rights of renewal and extension, to the City. To that end, the Contractor agrees to execute and deliver all necessary documents requested by the City in connection therewith and appoints the City as Contractor's agent and attorney-in-fact to act for and in Contractor's behalf and stead to execute, register, and file any such applications, and to do all other lawfully permitted acts to further the registration, prosecution, issuance, renewals, and extensions of copyrights or other protections with the same legal force and effect as if executed by the Contractor; further, the parties expressly agree that the provisions of this intellectual property rights section shall be binding upon the parties and their heirs, legal representatives, successors, and assigns.

20. WAIVERS

No waiver of default by the City of any of the terms, covenants, and conditions hereof to be performed, kept, and observed by the Contractor shall be construed, or shall operate, as a waiver of any subsequent default of any of the terms, covenants, or conditions herein contained to be performed, kept, and observed by the Contractor.

21. THIRD PARTIES

It is expressly understood and agreed that enforcement of the terms and conditions of this Contract, and all rights of action relating to such enforcement, shall be strictly reserved to the Parties hereto, and nothing contained in this Contract shall give or allow any such claim or right of action by any other or third person or entity on such Contract. It is the express intention of the Parties hereto that any person or entity, other than the Parties to this Contract, receiving services or benefits under this Contract shall be deemed to be incidental beneficiaries only.

22. TERMINATION

A. Termination for Convenience.
By signing this Contract, Contractor represents that it is a sophisticated business and enters into the Contract voluntarily, has calculated all business risks associated with this Contract, and understands and assumes all risks of being terminated for convenience, whether such risks are known or not known. Contractor agrees that the City may terminate this Contract at any time for convenience of the City, upon written notice to the Contractor. Contractor expressly agrees to and assumes the risk that the City shall not be liable for any costs or fees of whatsoever kind and nature if termination for convenience occurs before Contractor begins

any work or portion of the work. Contractor further expressly agrees and assumes the risks that the City shall not be liable for any unperformed work, anticipated profits, overhead, mobilizations costs, set-up, demobilization costs, relocation costs of employees, layoffs or severance costs, administrative costs, productivity costs, losses on disposal of equipment or materials, cost associated with the termination of subcontractors, costs associated with purchase orders or purchases, or any other costs or fees of any kind and nature, if Contractor has started or performed portions of the Contract prior to receiving notice from the City. The City shall be liable only for the portions of work Contractor actually satisfactorily completed up to the point of the issuance of the Notice of Termination for convenience. Upon receipt of this notice the Contractor shall immediately: discontinue all services affected (unless the notice directs otherwise), and deliver to the City all data, drawings, specifications, reports, estimates, summaries, and other information and materials accumulated in performing this Contract, whether completed or in process.

B. Termination for Cause: The occurrence of any one or more of the following events ("Event of Default") will justify termination for cause:
   i. Contractor's failure to perform the work in accordance with the Contract Documents (including, but not limited to, failure to supply sufficient skilled workers or suitable materials or equipment or failure to adhere to the progress schedule as adjusted from time to time.
   ii. Contractor's disregard of the laws or regulations of any public body having jurisdiction.
   iii. Contractor's disregard of the authority of Project Manager.
   iv. Contractor's violation in any material provision of the Contract Documents.
   v. Contractor's failure to make prompt payments to its subcontractors, and suppliers of any tier, or laborers or any person working on the work by, through, or under the Contractor or any of them, any all of their employees, officers, servants, members, and agents.
   vi. Contractor files a petition commencing a voluntary case under the U.S. Bankruptcy Code, or for liquidation, reorganization, or an arrangement pursuant to any other U.S. or state bankruptcy Laws, or shall be adjudicated a debtor or be declared bankrupt or insolvent under the U.S. Bankruptcy Code, or any other federal or state laws relating to bankruptcy, insolvency, winding-up, or adjustment of debts, or makes a general assignment for the benefit of creditors, or admits in writing its inability to pay its debts generally as they become due, or if a petition commencing an involuntary case under the U.S. Bankruptcy Code or an answer proposing the adjudication of Contractor as a debtor or bankrupt or proposing its liquidation or reorganization pursuant to the Bankruptcy Code or any other U.S. federal or state bankruptcy laws is filed in any court and Contractor consents to or acquiesces in the filing of that pleading or the petition or answer is not discharged or denied within sixty (60) Calendar Days after it is filed.
   vii. A custodian, receiver, trustee or liquidator of Contractor, all or substantially all of the assets or business of Contractor, or of Contractor's interest in the Work or the Contract, is appointed in any proceeding brought against Contractor and not discharged within sixty (60) Calendar Days after that appointment, or if Contractor shall consent to or acquiesces in that appointment.
   viii. Contractor fails to commence correction of defective work or fails to correct defective work within a reasonable period of time after written notice.

If one or more of the events identified in Paragraphs i-viii above occur, City may give Contractor written notice of the event and direct the event be cured. Any such Notice to Cure will provide Contractor a minimum of ten (10) calendar days to prepare and submit to the Project Manager a plan to correct the Event of Default. If such plan to correct the Event of Default is not submitted to the Project Manager within ten (10) days after the date of the written notice or such plan is unacceptable to the City, the City may, give Contractor (and the Surety, if any) written notice that

Contractor's services are being terminated for cause. Upon delivery of the termination notice, City may terminate the services of Contractor in whole or in part, exclude Contractor from the site, and take possession of the work and of all Contractor's tools, appliances, equipment, and machinery at the project site, and use the same to the full extent they could be used by Contractor (without liability to Contractor for trespass or conversion), incorporate in the work all materials and equipment stored at the site or for which City has paid Contractor but which are stored elsewhere, and finish the work as City may deem expedient. In such case, Contractor shall not be entitled to receive any further payment until Certificate of Completion of the work. In the event City terminates this Contract for Cause and the cost of completing the work exceeds the unpaid balance of the Contract price, Contractor shall pay City for any costs of completion which exceed the Contract price when combined with all amounts previously paid to Contractor. When exercising any rights or remedies under this paragraph City shall not be required to obtain the lowest price for the work performed. Should the cost of such completion, including all proper charges, be less than the original Contract price, the amount so saved shall accrue to the City. Neither the City nor any officer, agent or employee of the City shall be in any way liable or accountable to the Contractor or the Surety for the method by which the completion of the said work, or any portion thereof, may be accomplished or for the price paid.

Where Contractor's services have been so terminated by City, the termination will not affect any rights or remedies of City against Contractor or Surety then existing or which may thereafter accrue. Any retention or payment of moneys due Contractor by City will not release Contractor from liability.

C. Termination Notice. Upon receipt of a termination notice, whether for convenience or cause, the Contractor shall immediately: discontinue all services affected (unless the notice directs otherwise), and deliver to the City all data, drawings, specifications, reports, estimates, summaries, and other information and materials accumulated in performing this Contract, whether completed or in process.

D. Removal of Equipment. Except as provided above, in the case of termination of this Contract before completion from any cause whatever, the Contractor, if notified to do so by the City, shall promptly remove any part or all of Contractor's equipment and supplies from the property of the City, failing which the City shall have the right to remove such equipment and supplies at the expense of the Contractor.

23. BOOKS OF ACCOUNT AND AUDITING

The Contractor shall make available to the City if requested, true and complete records, which support billing statements, reports, performance indices, and all other related documentation. The City's authorized representatives shall have access during reasonable hours to all records, which are deemed appropriate to auditing billing statements, reports, performance indices, and all other related documentation. The Contractor agrees that it will keep and preserve for at least seven years all documents related to the Contract which are routinely prepared, collected or compiled by the Contractor during the performance of this Contract.

The City's Auditor and the Auditor's authorized representatives shall have the right at any time to audit all of the related documentation. The Contractor shall make all documentation available for examination at the Auditor's request at either the Auditor's or Contractor's offices, and without expense to the City.

24. COMPLIANCE WITH IMMIGRATION REFORM AND CONTROL ACT OF 1986

Contractor certifies that Contractor has complied with the United States Immigration Reform and Control Act of 1986. All persons employed by Contractor for performance of this Contract have completed and signed Form I-9 verifying their identities and authorization for employment.

25. LABOR

The Contractor shall employ only competent and skilled workmen and foremen in the conduct of work on this Contract. The Contractor shall at all times enforce strict discipline and good order among Contractor's employees. The Project Manager shall have the authority to order the removal from the work of any person, including Contractor's or any subcontractor's employees, who refuses or neglects to observe any of the provisions of these Plans or Specifications, or who is incompetent, abusive, threatening, or disorderly in conduct and any such person shall not again be employed on the Project.

In no event shall the City be responsible for overtime pay.

26. GRATUITIES

A. This Contract may be terminated if the Mayor, the Mayor's designee, and/or the Procurement Services Manager determine, in their sole discretion, that the Contractor or any officer, employee, agent, or other representative whatsoever, of the Contractor offered or gave a gift or hospitality to a City officer, employee, agent or Contractor for the purpose of influencing any decision to grant a City contract or to obtain favorable treatment under any City contract.

B. The terms "hospitality" and "gift" include, but are not limited to, any payment, subscription, advance, forbearance, acceptance, rendering or deposit of money, services, or anything of value given or offered, including but not limited to food, lodging, transportation, recreation or entertainment, token or award.

C. Contract termination under this provision shall constitute a breach of contract by the Contractor, and the Contractor shall be liable to the City for all costs of reletting the contract or completion of the project. Further, if the Contractor is terminated under this provision, or violates this provision but is not terminated, the Contractor shall be subject to debarment under the City's Procurement Regulations. The rights and remedies of the City provided in this clause shall not be exclusive and are in addition to any other rights and remedies provided by law or under this Contract.

27. NON-DISCRIMINATION

A. In accord with section 24-34-402, C.R.S., Title VII of the Civil Rights Act of 1964, Americans with Disabilities Act of 1990 as amended, all applicable federal and state laws, the Contractor will not discriminate against any employee or applicant for employment because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, religion, age, national origin, or ancestry.

B. The Contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided setting forth the provisions of this nondiscrimination clause.

C. The Contractor will, in all solicitations or advertisements for employees placed by or on behalf of the Contractor, state that all qualified applicants will receive consideration for employment without regard to disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, religion, age, national origin, or ancestry.

28. TECHNOLOGY ACCESSIBILITY

Contractor hereby certifies and guarantees that the products and services, including but not limited to any software-as-a-service or online platform, being purchased by City are compliant with: (i) the accessibility standards established by the chief information officer of the State of Colorado in accord with Section 24-85-103, C.R.S., as may be amended, including Web Content Accessibility Guidelines ("WCAG") 2.1 "Level A" and "Level AA," or other applicable accessibility standards required by the State of Colorado pertaining to those with disabilities, and (ii) any federally adopted law or regulation pertaining to technology accessibility for those with disabilities, including but not limited to the final rule published by the Department of Justice in the Federal Register on April 24, 2024, updating regulations for Title II of the Americans with Disabilities Act (ADA), "Nondiscrimination on the Basis of Disability; Accessibility of Web Information and Services of State and Local Government Entities," 28 CFR Part 35, [CRT Docket No. 144; AG Order No. 5919-2024], RIN 1190-AA79, as such laws may be amended (together the "Accessibility Laws"). Contractor shall provide the City with a completed Voluntary Product Accessibility Template ("VPAT"), WCAG Edition, attached hereto as Exhibit __ and incorporated herein, that demonstrates compliance with applicable WCAG standards and the Accessibility Laws. Contractor shall immediately, or within the timeframe designated by City, resolve and remediate all accessibility issues discovered in Contractor's products and services. All of Contractor's ongoing maintenance, updates, upgrades, fixes, and other changes to the products or services shall conform to these requirements and comply with the Accessibility Laws. During all periods where Contractor's products and services do not conform to the Accessibility Laws or otherwise have accessibility issues, Contractor shall provide all reasonable accommodations for users of the products and services as directed by the City and at no additional charge.

Failure to comply with the Accessibility Laws and accessibility standards or to provide the necessary documentation may result in the City, in its sole discretion, terminating the Agreement, Statement of Work, Order Form, or other agreement for material breach, without Contractor recourse. In the event of such termination by City, Contractor shall refund all amounts paid to Contractor under the Agreement or other terminated document. Contractor shall indemnify, defend, and hold harmless City and its representatives for any failure, or allegation of failure, of the products or services to conform with the applicable accessibility standards and Accessibility Laws, including but not limited to any civil claim or suit filed by a person with a disability pursuant to Section 24-34-802, C.R.S., as may be amended.

29. ORDER OF PRECEDENCE

Any inconsistency in this Contract shall be resolved by giving precedence in the following order:

A. This Contract document with its terms and conditions
B. The Statement of Work
C. Other Appendices, Attachments, Exhibits, or Schedules

30. HEADINGS

The section headings contained in this Contract are for reference purposes only and shall not affect the meaning or interpretation of this Contract.

31. DISPUTES

A. All administrative and contractual disputes arising from or related to this Contract shall be addressed in the following manner:
   i. If either Party disputes or disagrees with a Contract term or the other Party's interpretation of a Contract term or has any other administrative or contractual dispute not addressed in the Unanticipated Circumstances provisions, such Party shall promptly give the other Party written notice of said dispute.
   ii. The Parties shall hold a meeting as soon as reasonably possible, but in no event later than thirty (30) calendar days from the initial written notice of the dispute, attended by persons with decision-making authority regarding the dispute, to attempt in good faith to negotiate a resolution of the dispute; provided, however, that no such meeting shall be deemed to vitiate or reduce the obligations and liabilities of the Parties or be deemed a waiver by a Party of any remedies to which such Party would otherwise be entitled unless otherwise agreed to by the Parties in writing.
   iii. If, within thirty (30) calendar days after such meeting, the Parties have not succeeded in negotiating a resolution of the dispute, they agree to submit the dispute to non-binding mediation and to bear equally the costs of the mediation.
   iv. The Parties will jointly appoint a mutually acceptable mediator. If they fail to do so within twenty (20) calendar days from the conclusion of the negotiation period, they shall each select a mediator. The two mediators will then appoint a third mediator who shall conduct mediation for the Parties as the sole mediator.
   v. The Parties agree to participate in good faith in the mediation and negotiations for a period of thirty (30) calendar days. The substantive and procedural law of the State of Colorado shall apply to the proceedings. If the Parties are not successful in resolving the dispute through mediation, then the Parties shall be free to pursue any other remedy afforded by the laws of the State of Colorado.
   vi. Until final resolution of any dispute hereunder, the Contractor shall diligently proceed with the performance of this Contract as directed by the City. For purposes of this Contract, termination for convenience shall not be deemed a dispute. The City of Colorado Springs and the Contractor agree to notify each other in a timely manner of any claim, dispute, or cause of action arising from or related to this Contract, and to negotiate in good faith to resolve any such claim, dispute, or cause of action. To the extent that such negotiations fail, the City of Colorado Springs and the Contractor agree that any lawsuit or cause of action that arises from or is related to this Contract shall be filed with and litigated only by the Colorado District Court for El Paso County, CO.

32. DELIVERY

The City may cancel this Contract or any portion thereof if delivery is not made when and as specified, time being of the essence in this Contract. Contractor shall pay the City for any loss or damage sustained by the City because of failure to perform in accordance with this Contract.

33. PAYMENTS

The City will make payments for services on a monthly basis for services performed during the previous month in accordance with this Contract. All labor Invoices shall include labor categories, rates, hours worked, and total amounts per category. All labor categories and rates charged must

be included in this Contract. No other categories or rates will be allowed or payable. All labor invoices are subject to City approval.

Materials will be payable on a reimbursable basis with no additional profit, fee, overhead, handling, or General and Administrative (G&A) costs. All costs for materials shall be approved by the City Contracts Specialist before the costs are incurred and payable.

The City will pay the Contractor, upon submission of proper invoices, the prices stipulated in the Contract for services rendered and accepted, less any deductions provided in this Contract within 30 days (Net 30). The City will not pay late fees or interest. Any discount payment terms offered on the invoice may be taken by the City.

34. INSPECTION OF SERVICES

The Contractor is responsible for performing or having performed all inspections and tests necessary to substantiate that the services furnished under this Contract conform to Contract requirements, including any applicable technical requirements for specified manufacturers' parts. This clause takes precedence over any City inspection and testing required in the Contract's specifications, except for specialized inspections or tests specified to be performed solely by the City.

A. Definition of "services", as used in this clause, includes services performed, workmanship, and material furnished or utilized in the performance of services.

B. The Contractor shall provide and maintain an inspection system acceptable to the City covering the services under this Contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the City during Contract performance and for as long afterwards as the Contract requires.

C. The City has the right to inspect and test all services called for by the Contract, to the extent practicable at all times and places during the term of the Contract. The City will perform inspections and tests in a manner that will not unduly delay the work.

D. If the City performs inspections or test on the premises of the Contractor or a subcontractor, the Contractor shall furnish, and shall require subcontractors to furnish, at no increase in Contract price, all reasonable facilities and assistance for the safe and convenient performance of these duties.

35. SECURITY

The City maintains security requirements regarding access to City buildings and other City workplaces and worksites on City property. All Contractor personnel accessing City buildings, workplaces, or worksites, may be required to produce a valid, Government issued picture identification. Contractor personnel lacking such identification may not be allowed access to such sites. No costs incurred by the Contractor due to City security requirements shall be allowable or payable under this Contract.

36. TIME IS OF THE ESSENCE

In as much as the Contract concerns a needed or required service, the terms, conditions, and provisions of the Contract relating to the time of performance and completion of work are of the

essence of this Contract. The Contractor shall begin work on the day specified and shall prosecute the work diligently so as to assure completion of the work within the number of calendar days or date specified, or the date to which the time for completion may have been extended.

37. EMPLOYMENT OF LABOR

The Contractor shall comply with and defend and hold the City harmless from any violation of all laws and lawful rules and regulations, both of the State of Colorado and of the United States, relating to Workmen's Compensation, unemployment compensation, Social Security, payment for overtime, and all other expenses and conditions of employment under this Contract.

38. SALES TAX

The Contractor must have a tax-exemption certificate from the Colorado Department of Revenue for this project. The certificate does not apply to City of Colorado Springs Sales and Use Tax which shall be applicable. The tax-exempt project number and the exemption certificate only applies to County, PPRTA (Pikes Peak Rural Transportation Authority), and State taxes when purchasing construction and building materials **to be incorporated into this project**.

Furthermore, the exemption **does not** include or apply to the purchase or rental of equipment, supplies or materials that **do not become a part of the completed project or structure**. Such purchases and rentals are subject to full applicable taxation.

All contracts with subcontractors must include the City of Colorado Springs Sales and Use Tax on the work covered by the Contract, and other taxes as applicable.

Note: For all equipment, materials and supplies incorporated into the work purchased from vendors or suppliers not licensed to collect City Sales Tax (i.e. out of state suppliers, etc.), City Use Tax is due and payable to the City. The Contractor shall execute and deliver and shall cause the Contractor's subcontractors to execute and deliver to the City Sales Tax Office, the appropriate ST forms as designated by the City Sales Tax Office. These forms shall list all said equipment, materials and supplies and the corresponding use tax due, along with payment for said taxes. Any outstanding taxes due may be withheld from the final payment due the Contractor and may result in suspension of Contractor from bidding on City projects.

Forms and instructions can be downloaded at https://coloradosprings.gov/sales-tax. Questions can be directed to the City Sales Tax Division at (719) 385-5903 or SalesTax@coloradosprings.gov.
Our Registration Numbers are as follows:
City of Colorado Springs
Federal I.D.: 84-6000573
Federal Excise: A-138557
State Sales Tax: 98-03479

The Contractor's payment or exemption of State of Colorado, El Paso County and City Sales and Use Taxes shall be as specified herein.

39. SEVERABILITY

If any terms, conditions, or provisions of this Contract shall be held unconstitutional, illegal, or void, such finding shall not affect any other terms, conditions, or provisions of this Contract.

40. LIABILITY OF CITY EMPLOYEES

All authorized representatives of the City are acting solely as agents and representatives of the City when carrying out and exercising the power or authority granted to them under the Contract. There shall not be any liability on them either personally or as employees of the City.

41. USE OF CITY NAME OR LOGO

Except as otherwise provided in this Contract, the Contractor shall not refer to this Contract or the City of Colorado Springs in any advertising or promotions in such a manner as to state or imply that the product or service provided is endorsed or preferred by the City of Colorado Springs, its employees, or its Departments, or is considered by these entities to be superior to other products or services. Any use of the name or logo of the City of Colorado Springs in advertising or promotions must be approved in writing by the City of Colorado Springs Contracts Specialist assigned to the Contract prior to such use.

42. TRAVEL

If travel expenses are included as a line item in this Contract, all travel expenses incurred and billable by the Contractor are subject to City approval. Air travel shall be limited to the round trip "economy coach" fare. Travel from the Colorado Springs Airport is encouraged. Unless there are extenuating circumstances, the Contract should take advantage of lower airfares by purchasing tickets more than 14 days in advance of travel. In-state travel by air must be more economical than travel by private vehicle. Use of a private vehicle may be reimbursed per mile at the current rate published by the IRS annually. Short-term parking, long-term parking or cab fare associated with airport departure and arrival may be allowable expenses. Valet parking will not be allowed unless it is the least expensive or only option. Car rental rates may be reimbursed for car rentals no greater than the intermediate or standard classification. The City will not reimburse any other travel methods or expenses. The City will pay for lodging, meals, and miscellaneous expenses on a per diem basis only, in accordance with the current per diem rates published by the IRS annually. The City will not pay for Contractor expenses exceeding the per diem rates. Receipts for all reimbursable expenses must be provided with the Contractor’s invoice.

43. ELECTRONIC SIGNATURES

This Agreement and all other documents contemplated hereunder may be executed using electronic signatures with delivery via facsimile transmission, by scanning and transmission of electronic files in Portable Document Format (PDF) or other readily available file format, or by copy transmitted via email, or by other electronic means and in one or more counterparts, each of which shall be (i) an original, and all of which taken together shall constitute one and the same agreement, (ii) a valid and binding agreement and fully admissible under state and federal rules of evidence and (iii) enforceable in accordance with its terms.

44. APPENDICES

The following Appendices are made a part of this Agreement:

1. Appendix A – Additional Terms and Conditions
2. Appendix B – Contractor’s Proposal,
3. Appendix C – Statement of Work.
4. Appendix D – Project Schedule

5. Appendix E – Insurance Requirements

CONTRACT SIGNATURE PAGE

IN WITNESS WHEREOF, the parties have caused these presents to be executed on the day and the year first above written.

This Contract is executed in one (1) original copy.

THE CITY OF COLORADO SPRINGS, COLORADO:

SECOND PARTY:	
SAMPLE CONTRACT ONLY	
Corporate Name	
Signature	Date
Title	

EXHIBIT 3 SAMPLE EVALUATION SCORESHEET

Proposer's Name: _____

Evaluator's Name: _____

Project Name/RFP#: _____

RFP EVALUATION CRITERIA DESCRIPTION	SCORE
1. TECHNICAL AREA The Offeror must explain its overall solution, considering the scope of work or statement of work provided. The content must include, but not necessarily be limited to, the following information.	
A. UNDERSTANDING OF AND COMPLIANCE WITH TECHNICAL REQUIREMENTS	
In the Technical Area, the Offeror should address each work area in sufficient detail to demonstrate a clear and full understanding of the work. The proposal should not merely parrot the requirements of the RFP. Further, the Offeror should provide evidence of sufficient planning to ensure the work is completed on schedule and within budget. Consider the following questions. 1. Does the proposal demonstrate a firm understanding of the requirements and goals of the Statement of Work, as well as industry standards and reasonable expectations for a company in the industry? 2. Does the proposal fully and completely address each requirement and goal of the Statement of Work? 3. Does the proposal provide solutions to indicate that requirements and goals will be met on schedule? 4. Does the technical solution seem realistic? 5. Does it generally appear that the Offeror knows and thoroughly understands the business and requirement? **COMMENTS:**	
B. PROJECT APPROACH	
In the Technical Area, the Offeror should clearly present proposed solutions and indicate that it has performed adequate planning to accomplish tasks as defined in the Statement of Work. Innovations, efficiencies, and detailed specifics are all encouraged. The Offeror must at least address the following areas: 1. Schedule Management. Offeror must approach to schedule management including updating and reporting progress of the work.	

2. Quality Control. Offeror must discuss quality control plan, processes and approach to ensure that the City receives a quality product. 3. Safety. Offeror must discuss approach and commitment to safety for its workers, the public, and City employees, if services are accomplished on a City site. 4. Offeror must discuss potential issues it foresees with this project and how Offeror would make adjustments if encountered. Consider the following questions. 1. Does the proposal include a complete plan to accomplish each requirement, including subcontracting (if applicable)? 2. Does the proposal demonstrate that appropriate and qualified personnel and equipment will be provided to carry out the requirement? 3. Is the proper level of effort directed toward each requirement? Does the level of effort look unrealistically low or unreasonably high? **COMMENTS**	
Sum of Ratings in Management Area (Add numbers in Sections 1.A. and 1.B.)	
2. MANAGEMENT AREA The Offeror must explain its method of managing the work to be performed. The content must include, but no necessarily be limited to, the following information.	
A. PROJECT MANAGEMENT CONTROLS	
In In the Management Area, the Offeror should provide a plan of operation, to include management of personnel, workload, schedule, and budget. It should also include an organization chart which demonstrates clear and effective lines of authority, responsibility, and communication for management, supervisory, and technical personnel. The plan should address which job classification or personnel will be assigned to each task and how that determination is made. Basic human resource management concepts should be addressed, including hiring, firing, discipline, incentive plans, etc. If the Offeror plans to subcontract more than 10% of the work, include information on how the Offeror plans to manage its subcontractors. Consider the following questions. 1. Does the proposal address the issues above in sufficient detail to demonstrate a sophisticated and mature management control system? 2. Are program management controls consistent with the technical portion of the proposal, especially regarding schedule and level of effort? 3. Does the plan and controls indicate that the Offeror will obtain, keep, and efficiently utilize high quality personnel? 4. Does the offer address corrective actions? **COMMENTS:**	
B. PAST PERFORMANCE/RELEVANT EXPERIENCE	
In the Management Area, the Offeror should provide at least three references or contracts demonstrating that it successfully provided services/products same or	

similar to those required in the RFP. The proposal should adequately explain how the projects were completed on schedule and within budget. Consider the following questions. 1. Does the proposal include at least three references or past performance citations? 2. Are the references or past performance citations relevant to the requirements of the Statement of Work of the RFP? 3. Does the Offeror explain how they were successful on the projects provided as past performance? 4. Does the Offeror apply the past performance to the City requirement in such a way as to demonstrate added value due to experience? **COMMENTS**	
C. KEY PERSONNEL	
In the Management Area, resumes must be provided for all personnel considered key, as required by the RFP. It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions. Resumes do not count toward the page limitation. Explain how the key personnel were related to the projects cited as relevant past performance. Consider the following questions. 1. Does the Offeror provide complete resumes, including education, experience, background information, accomplishments, and other pertinent information? 2. Does the Offeror provide resumes for all key personnel, as required by the RFP? 3. Do the resumes demonstrate adequate professional, technical, and management levels to accomplish the work effectively and efficiently? **COMMENTS:**	
Sum of Ratings in Management Area (Add numbers in Sections 2.A., 2.B and 2. C.)	
3. PRICE/COST AREA	
In the Price Area, the Offeror should provide a detailed breakdown of the price for each year of performance. The price must be fully loaded/all-inclusive and include unit cost for material, labor, other direct costs (e.g. travel), indirect costs (i.e. overhead and general and administrative costs), and profit/fee. Offers must include sufficient detail to allow insight into the fairness and reasonableness of the price. If the contract type will be T&M, labor categories, labor rates, separated profit, and estimated material costs must be included in detail. In addition, although price may not be the most important factor, it is still very important to the City of Colorado Springs. The Offeror's pricing must be competitive as compared to the budget amount, market pricing in the industry, and the pricing of the other Offerors.	

Consider the following questions: 1. How does the price compare to the industry competition? 2. If low, is it unrealistically low? 3. If high, is there demonstrated added value for the additional cost? 4. Does the Offeror provide general labor rates? 5. Does the Offeror provide equipment array pricing? 3. Does the Offeror provide cost plus markup fixed percentage rates for materials and products? **COMMENTS:**	
Total Price/Cost Area (Insert number from Section 3 evaluation above):	
4. PROPOSAL PRESENTATION	
Presentation is an important factor. Offerors should provide a highly professional product, which is complete, accurate, easily understood, and effectively presented. **COMMENTS:**	
EXCEPTIONS PROPOSED	
What (if any) exceptions (redlines to our terms and conditions) were proposed? Are they acceptable? **COMMENTS:**	**Pass/Fail**
INSURANCE EXCEPTIONS PROPOSED	
What (if any) exceptions (redlines to our insurance terms and conditions) were proposed? Are they acceptable? **COMMENTS:**	**Pass/Fail**
TOTAL SCORE – Add Evaluation Scores from Sections 1-5. The sum is the total score.	Total Score:

EXHIBIT 4 – SAMPLE SIMD PRICE SHEET REQUEST

FOLLOWS THIS PAGE

BRIARGATE GID

Task	Total
Turfgrass Mowing/Trimming/Clipping Removal	
Seasonal Turfgrass Mowing/Trimming/Clipping Removal	
Blade Edging	
Turfgrass Fertilization - Spring	
Turfgrass Fertilization - Fall	
Core Aeration	
Broadleaf Weed Control	
~~Turf Pre-emergent Weed Control - Barricade + Gallery SC~~	
Enhanced Native Mowing/Trimming/Clipping Removal	
Enhanced Native Broadleaf Weed Control	
Nativegrass, Non IRR Mowing/Trimming/Clipping Removal	
Nativegrass, Non IRR Discretionary Mowing	
Other Native Mowing/Trimming/Clipping Removal	
Other Native Broadleaf Weed Control	
Grand Total	**$0.00**

BRIARGATE GID

		Turfgrass Mowing/Trimming/Clipping Removal: May 1 - October 31				Seasonal Mowing/Trimming/Clipping Removal: March, April, November, December - As directed by area supervisor.				Blade Edging - MAY, JULY, SEPT - October: completed between 8th & 16th of the month				NOTES:
SITE / ZONE	TURF ACRES	UNIT	QUANTITY	UNIT PRICE	EXTENDED	UNIT	QUANTITY	UNIT PRICE	EXTENDED	UNIT	QUANTITY	UNIT PRICE	EXTENDED	
1	1.69	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
2	1.16	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
3	3.17	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
4	0.90	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
5	3.02	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
6	3.10	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
7	0.65	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
8	1.14	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
9	0.49	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
10	0.81	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
11	2.01	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
12	2.53	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
13	0.22	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
14	0.68	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
15	0.50	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
16	0.93	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
17	0.37	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
20	0.42	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
21	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00	Blade Edge Enhanced Native
22	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00	Blade Edge Enhanced Native
23	0.72	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
24	1.30	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
25	1.42	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
26	0.47	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
27	0.56	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
30	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00	Blade Edge Enhanced Native
31	1.14	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
32	0.45	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
33	0.34	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
34	1.11	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
35	1.28	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	CHANNEL DR TURF CONVERSION AREA 2024
35A	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00	Blade Edge Enhanced Native
36	3.16	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
37	0.45	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	Push mower - high raised median
38 N & S	4.57	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	Pay attention to no mow area.
39	0.91	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
40	0.43	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	
41	0.09	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00	

42	0.32	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00		
45	0.72	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00		
46	0.94	EA	27	$0.00	$0.00	EA	3	$0.00	$0.00	EA	3	$0.00	$0.00		
Dynamic Native	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
Research Parkway	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
Windjammer	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
Austin Bluffs North	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
Austin Bluffs South	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
Explorer Trail	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
Briargate Trail	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
Briargate Trail North	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
Briargate Trail Plumstead	0.00	EA	0	$0.00	$0.00	EA	0	$0.00	$0.00	EA	3	$0.00	$0.00		
	44.17			TOTAL	$0.00			TOTAL	$0.00			TOTAL	$0.00		

BRIARGATE GID

		Spring Fertilization, Supply & Install, June 1 - 15				Fall Fertilization, Supply & Install, Sept 1 to Sept 15				Core Aeration, June 1 - 15, coordinate flagging heads				Broadleaf Weed Control, 1st app - Mid May, 2nd app - Mid September				
SITE / ZONE	**TURF ACRES**	**UNIT**	**QUANTITY**	**UNIT PRICE**	**EXTENDED**	**Unit**	**Quantity**	**Unit Price**	**Extended**	**Unit**	**Quantity**	**Unit Price**	**Extended**	**Unit**	**Quantity**	**Product**	**Unit Price**	**Extended**
1	1.69	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
2 N&S	1.16	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
3	3.17	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
4	0.90	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
5	3.02	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
6	3.10	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
7	0.65	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
8	1.14	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
9	0.49	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
10	0.81	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
11	2.01	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
12	2.53	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
13	0.22	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
14	0.68	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
15	0.50	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
17	0.37	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
20	0.42	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
23	0.72	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
24	1.30	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
25	1.42	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
26	0.47	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
27	0.56	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
31	1.14	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
32	0.45	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
33	0.34	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
34	1.11	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
35	1.93	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
36	3.16	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
37	0.45	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
38 N & S	4.57	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
39 N&S	0.91	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
40	0.43	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
41	0.09	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
42	0.32	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
45	0.72	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
46	0.94	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	1	$0.00	$0.00	Lump sum	2	Trimmec or Equal	$0.00	$0.00
	43.89			TOTAL	$0.00			TOTAL	$0.00			TOTAL	$0.00				TOTAL	$0.00

BRIARGATE GID

		Mowing/Trimming/Clipping Removal May 1 - Oct 31, Bi-Weekly				Broadleaf Weed Control - May 15 to May 30 & Sept 15 - Sept 30					4" MOW HEIGHT
SITE / ZONE	**ENHANCED NATIVE ACRES**	**UNIT**	**QUANTITY**	**UNIT PRICE**	**EXTENDED**	**UNIT**	**QUANTITY**	**UNIT PRICE**	**EXTENDED**	**Extended**	NOTES
21	0.32	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
22	0.20	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
30	0.48	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
35A	2.87	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
Channel Dr Native	0.65	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
Dynamic Native Area	2.41	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
Research Parkway	8.55	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
Austin Bluffs South	7.18	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
Briargate Trail North 2.0	0.25	EA	13	$0.00	$0.00	EA	2	Trimmec or Equal	$0.00	$0.00	
	22.91			TOTAL	$0.00				TOTAL	$0.00	

BRIARGATE GID

		Mowing/Trimming/Clipping Removal, June 1 - June 15, Aug 1 - Aug 15, Oct 1 - Oct 15				Additional Discretionary Mowing/Trimming/Clipping Removal, As directed by Area Supervisor				4" MOW HEIGHT
SITE / ZONE	**Unirrigated Native ACRES**	**UNIT**	**QUANTITY**	**UNIT PRICE**	**EXTENDED**	**UNIT**	**QUANTITY**	**UNIT PRICE**	**EXTENDED**	**NOTES**
Dynamic Native	4.99	EA	3	$0.00	$0.00	EA	2	$0.00	$0.00	
Explorer Trail	1.15	EA	3	$0.00	$0.00	EA	2	$0.00	$0.00	
Briargate Trail	2.84	EA	3	$0.00	$0.00	EA	2	$0.00	$0.00	Along Walks only, 4' wide each side
HP Trail	2	EA	3	$0.00	$0.00	EA	2	$0.00	$0.00	
Austin Bluffs North	3.23	EA	3	$0.00	$0.00	EA	2	$0.00	$0.00	
Austin Bluffs South	6.32	EA	3	$0.00	$0.00	EA	2	$0.00	$0.00	
Briargate Trail Plumstead	1.57	EA	3	$0.00	$0.00	EA	2	$0.00	$0.00	
Windjammer Native	1.41	EA	3	$0.00	$0.00	EA	2	$0.00	$0.00	
	23.51			TOTAL	$0.00			TOTAL	$0.00	

BRIARGATE GID

		SEE NOTES				Broadleaf Weed Control - May 15 to May 30 OR Sept 15 - Sept 30					Notes
SITE / ZONE	**OTHER NATIVE ACRES**	**UNIT**	**QUANTITY**	**UNIT PRICE**	**EXTENDED**	**UNIT**	**QUANTITY**	**UNIT PRICE**	**UNIT PRICE**	**EXTENDED**	
HP Trail No Mow Slope, Zone 38	0.89	Per occurrence	1	$0.00	$0.00	Lump sum	1	Trimmec or Equal	$0.00	$0.00	Spot Spray Invasives. Mow / string trim / rake Once Late Sept
Briargate Trail North	2.99	Per occurrence	1	$0.00	$0.00	Lump sum	1	Trimmec or Equal	$0.00	$0.00	Spot Spray Invasives. Mow Once Late Sept
Austin Bluffs South STEEP SLOPE	0.86	Per occurrence	1	$0.00	$0.00	Lump sum	1	Trimmec or Equal	$0.00	$0.00	Mow by hand with trimmers - steep slope, Spot Spray Invasives
	3.85			TOTAL	$0.00				TOTAL	$0.00	

EXHIBIT 5 – SAMPLE MOWING MAPS

FOLLOWS THIS PAGE



R26-091MZ

parks · recreation · cultural services

N

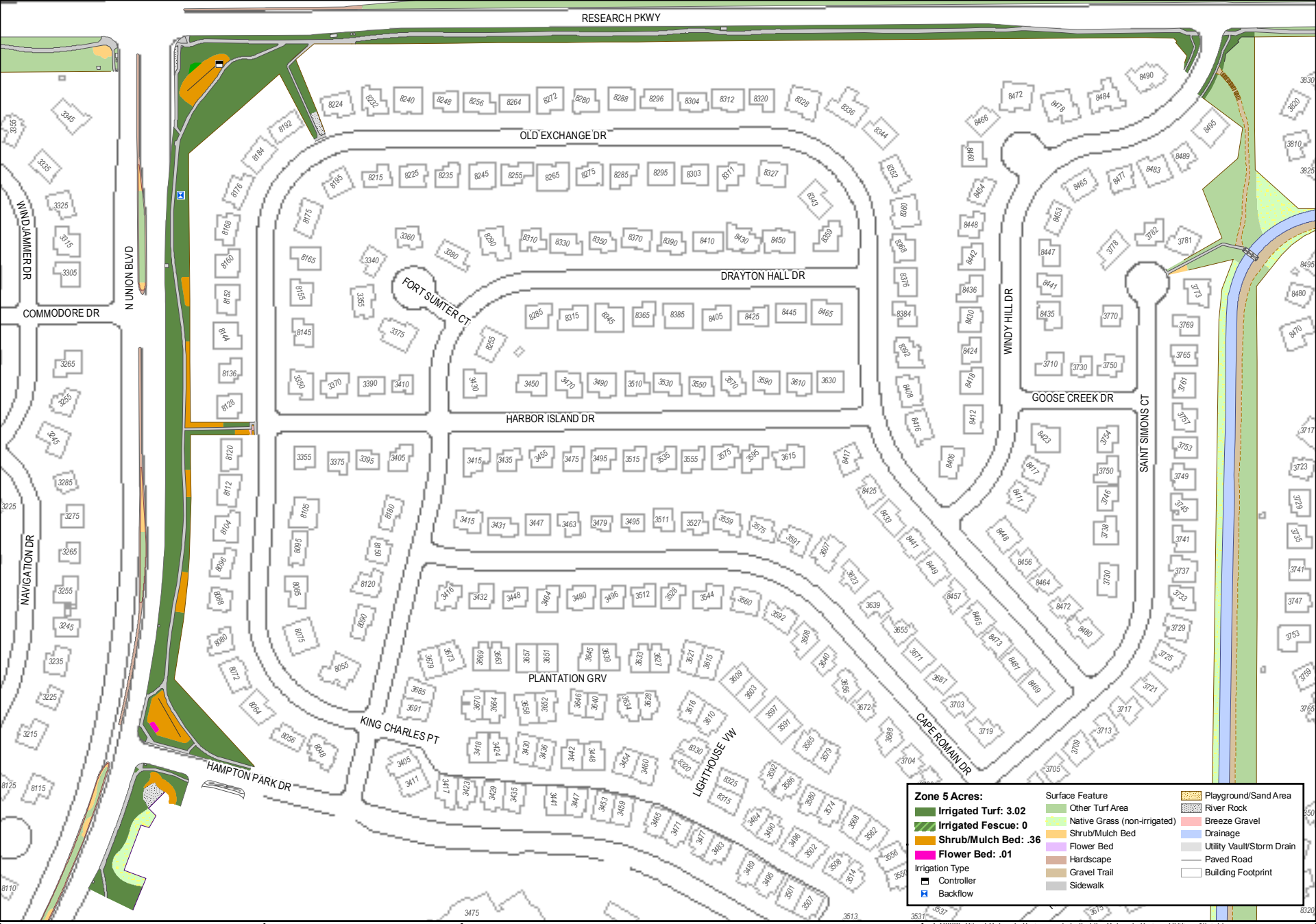
0 115 230

Feet

8609 N. Union Blvd Briargate Zone 4

MAP VERSION DATE: 1/6/2023	State Plane Coordinates Colorado Central Zone	NAD83 - US Survey Feet Vertical Datum - NGVD29

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Department of Information Technology
GIS Services Division

R26-091MZ

N

SCALE: 1 " = 260 '

0 130 260

Feet

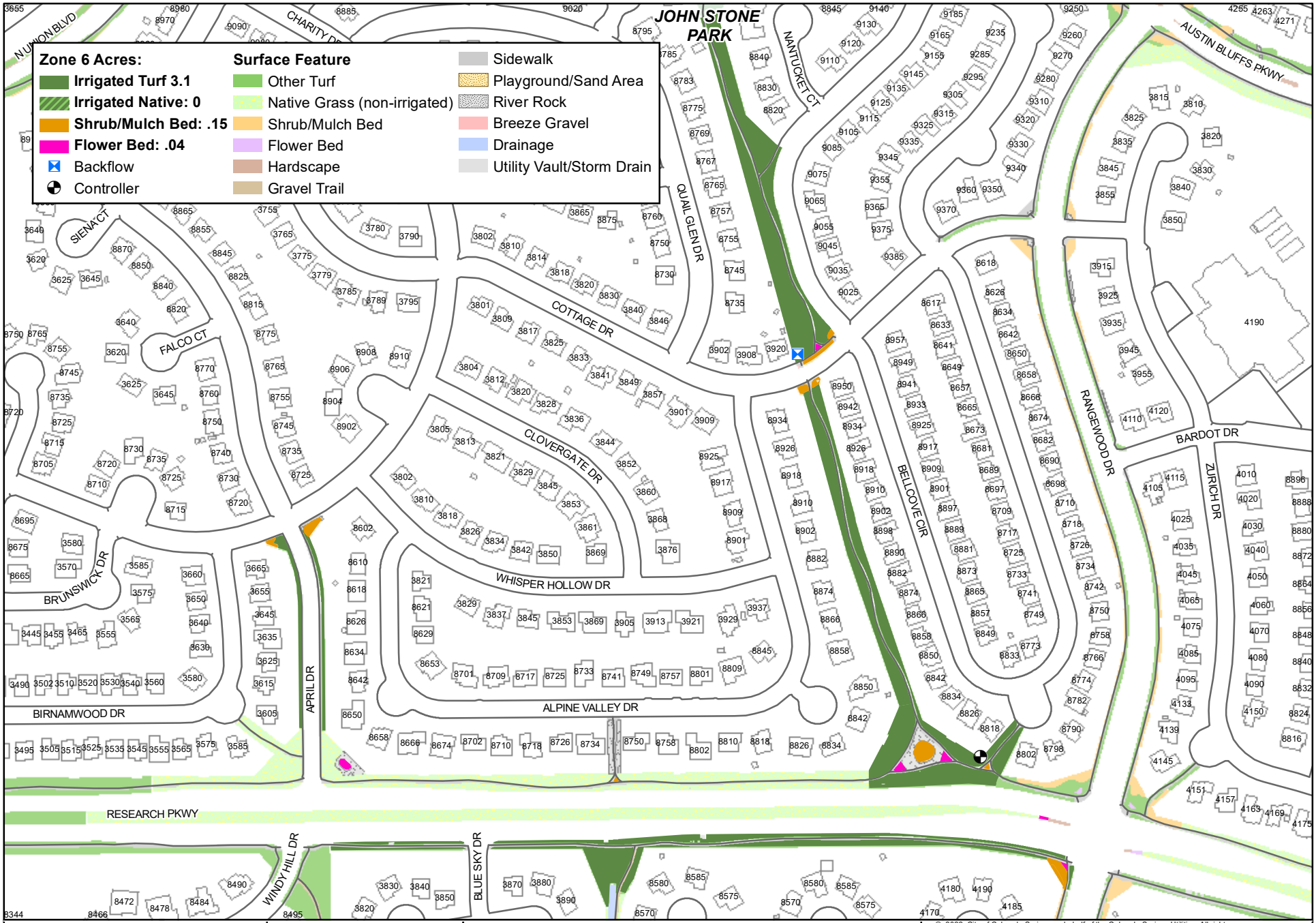
8220 Old Exchange Dr Briargate Zone 5 3.02 Acres

MAP VERSION: 01-12-2009

State Plane Coordinates
Colorado Central Zone

NAD83 - US Survey Feet
Vertical Datum - NGVD29

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N
SCALE: 1 " = 300 '
0 145 290
Feet

3930 Cottage Dr. Briargate Zone 6

MAP VERSION
DATE: 1/5/2023

State Plane Coordinates
Colorado Central Zone

NAD83 - US Survey Feet
Vertical Datum - NGVD29

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R26-091MZ

8982 Rangewood Dr Briargate Zone 7 .65 Acres

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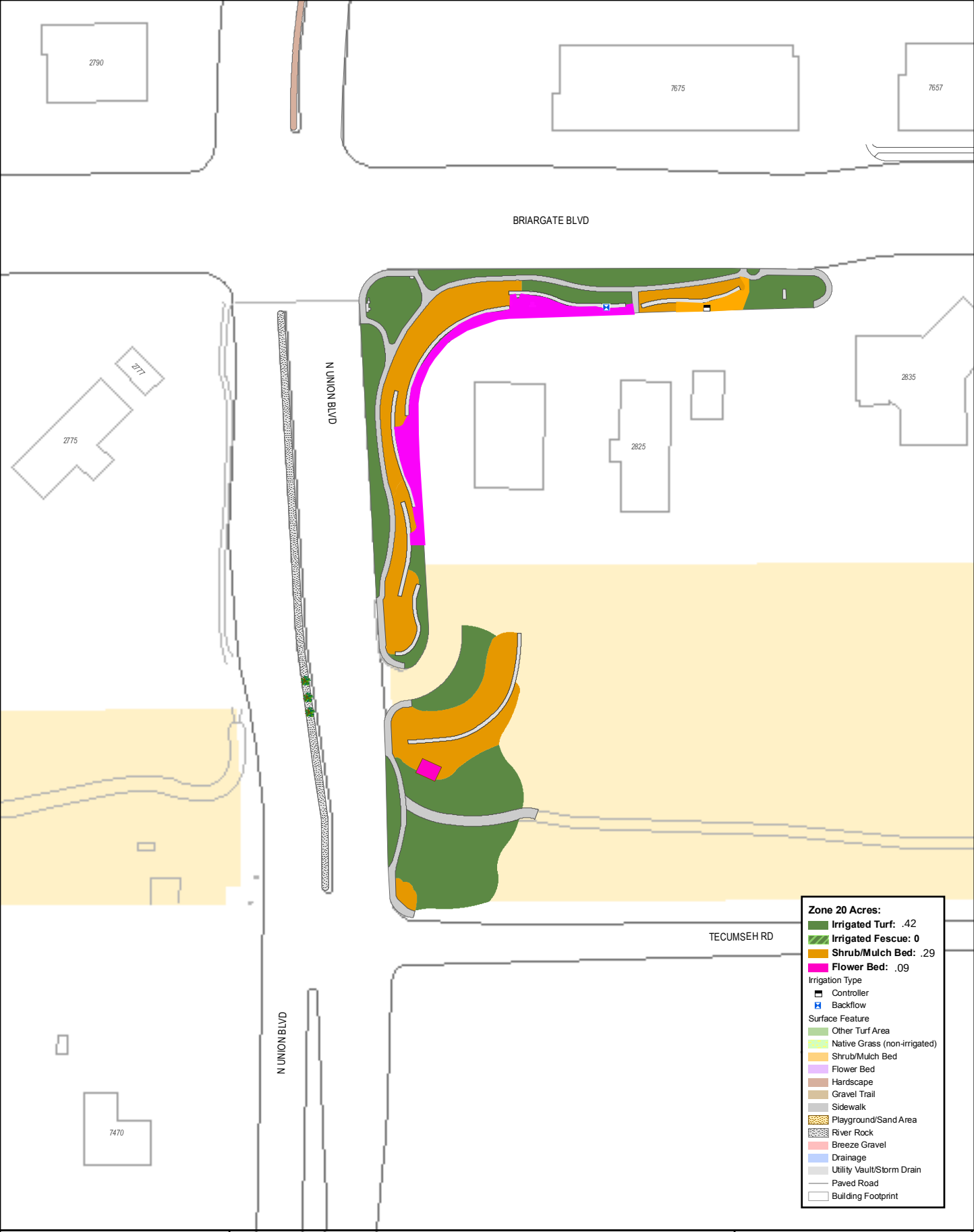
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Feet

MAP VERSION: 01-12-2009

State Plane Coordinates
Colorado Central Zone
NAD83 - US Survey Feet
Vertical Datum - NGVD29

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R26-091MZ

2825 Briargate Blvd — Briargate Zone 20 — .52 Acres

N

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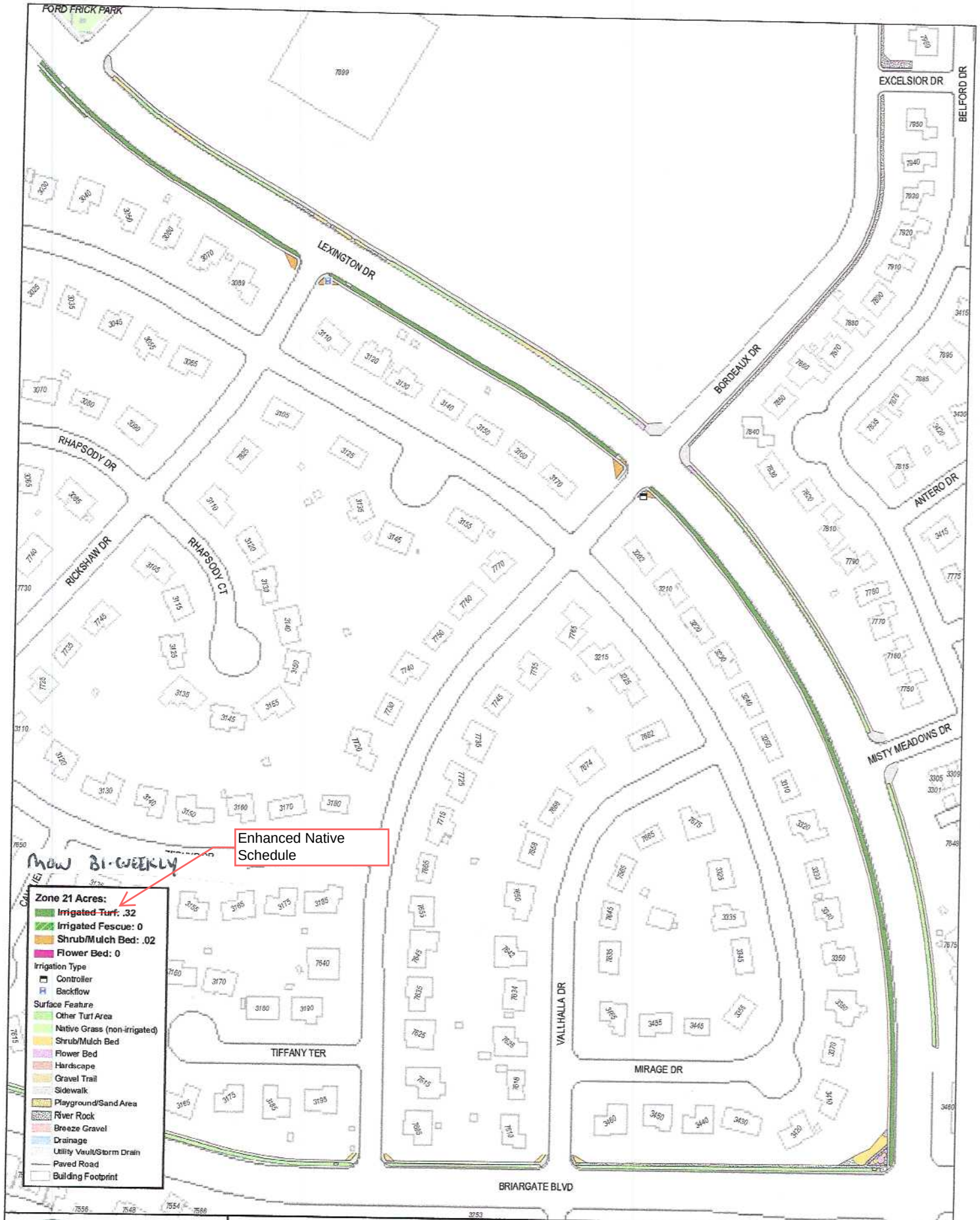
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Feet

MAP VERSION: 01-19-2009

State Plane Coordinates
Colorado Central Zone
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Vertical Datum - NGVD29

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7855 Lexington Dr. Briargate Zone 21 .32 Acres

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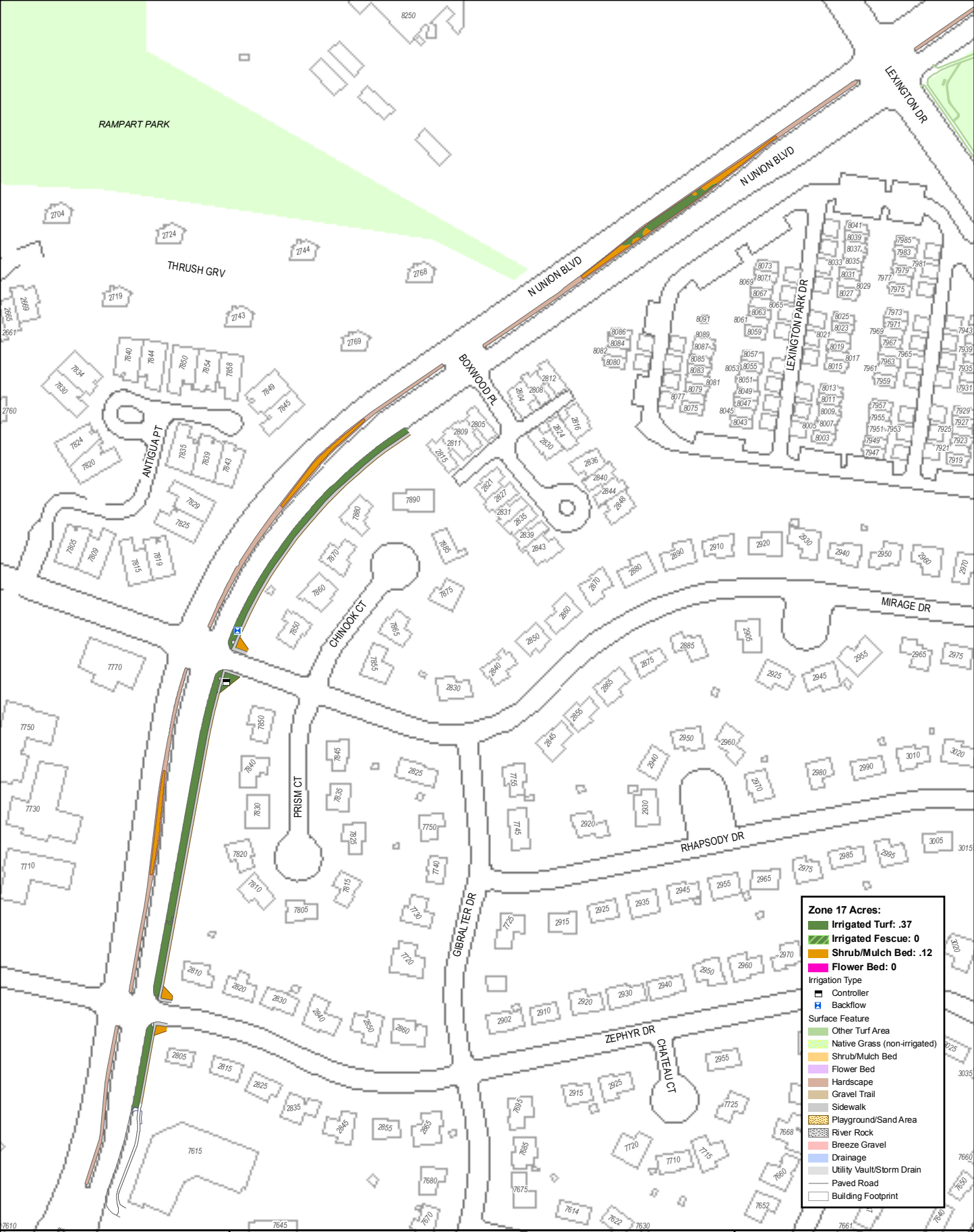
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State Plane Coordinates
Colorado Central Zone
NAD83 - US Survey Feet
Vertical Datum - NGVD29

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R26-091MZ

7855 N. Union Blvd. Briargate Zone 17 .37 Acres

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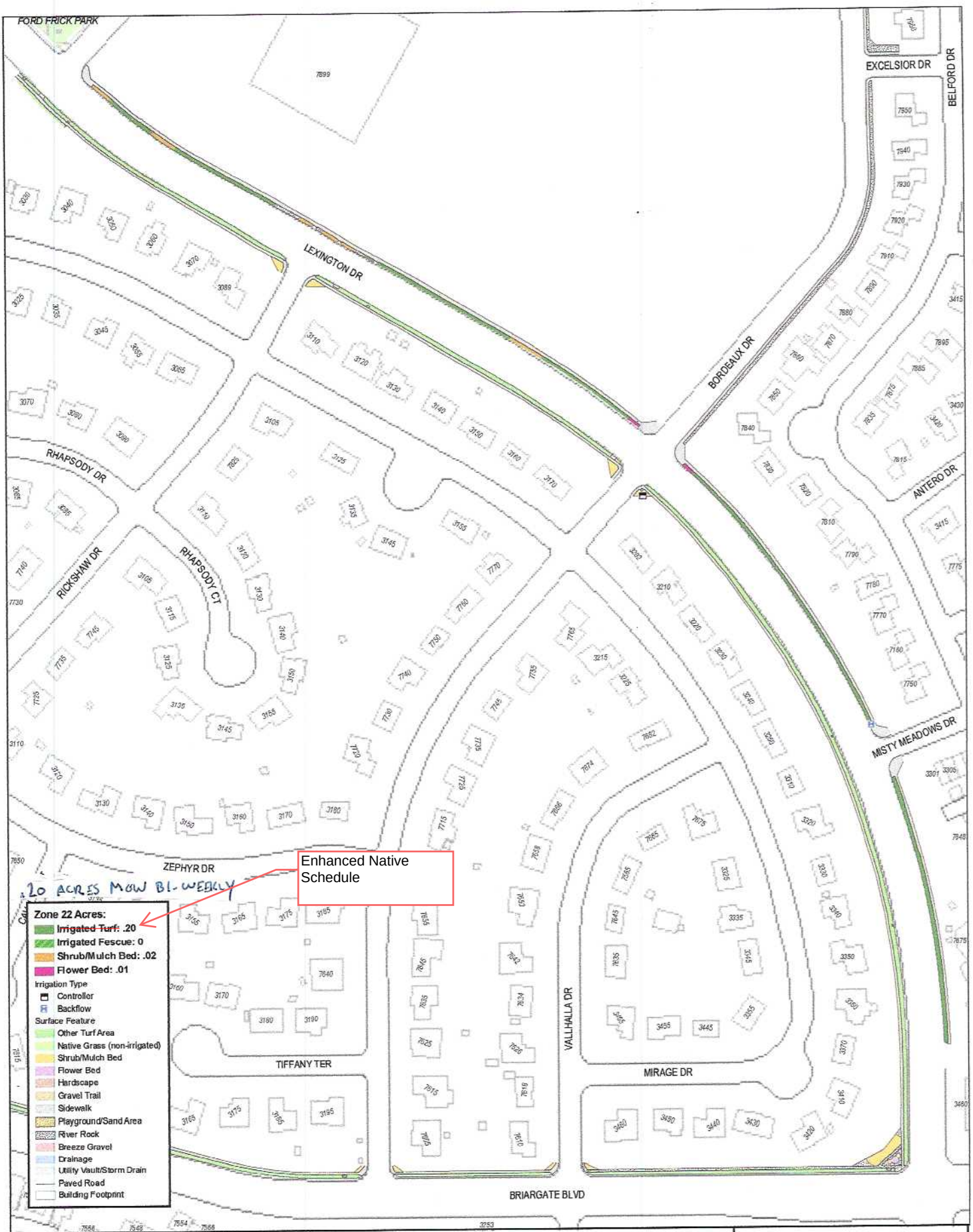
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Feet

MAP VERSION: 01-19-2009

State Plane Coordinates
Colorado Central Zone
NAD83 - US Survey Feet
Vertical Datum - NGVD29

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R26-091MZ

3402 Misty Meadows Dr. Briargate Zone 22 .20 Acres

N

SCALE: 1 " = 200 '

0 200

Feet

MAP VERSION: 01-19-2009

State Plane Coordinates
Colorado Central Zone
NAD83 - US Survey Feet
Vertical Datum - NGVD29

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8245 Rangewood Dr

Briargate Zone 26

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N

0 50 100 200

Feet

NAD83 - US Survey Feet
Vertical Datum - NGVD29
State Plane Coordinates Colorado Central Zone

Date: 1/9/2023

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R26-091MZ

8245 Rangewood Dr | Briargate Zone 27 | .56 Acres

N

SCALE: 1 " = 200 '

0 200 Feet

MAP VERSION: 04-17-2009

State Plane Coordinates
Colorado Central Zone
NAD83 - US Survey Feet
Vertical Datum - NGVD29

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N

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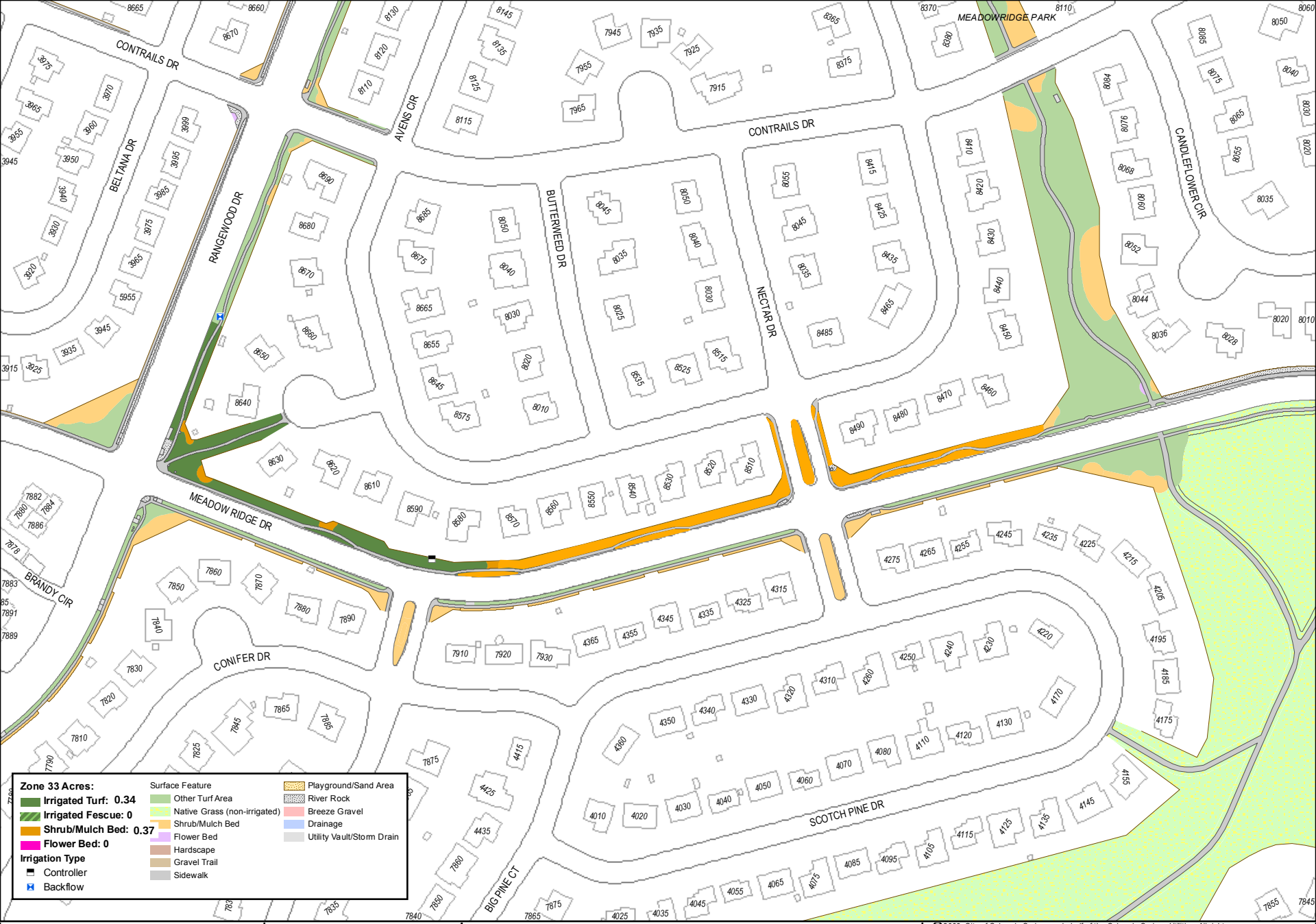
0 145 290
Feet

4702 E. Woodmen Rd. Briargate Zone 30

MAP VERSION DATE: 12/31/2020	State Plane Coordinates Colorado Central Zone	NAD83 - US Survey Feet Vertical Datum - NGVD29

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SCALE: 1 " = 200 '

0 100 200

Feet

8135 Rangewood Dr Briargate Zone 33 .66 Acres

MAP VERSION: 04-17-2009

State Plane Coordinates
Colorado Central Zone

NAD83 - US Survey Feet
Vertical Datum - NGVD29

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N

SCALE: 1 " = 200 '

0 100 200

Feet

8394 Freemantle Dr. Briargate Zone 25 1.42 Acres

MAP VERSION: 01-19-2009

State Plane Coordinates
Colorado Central Zone

NAD83 - US Survey Feet
Vertical Datum - NGVD29

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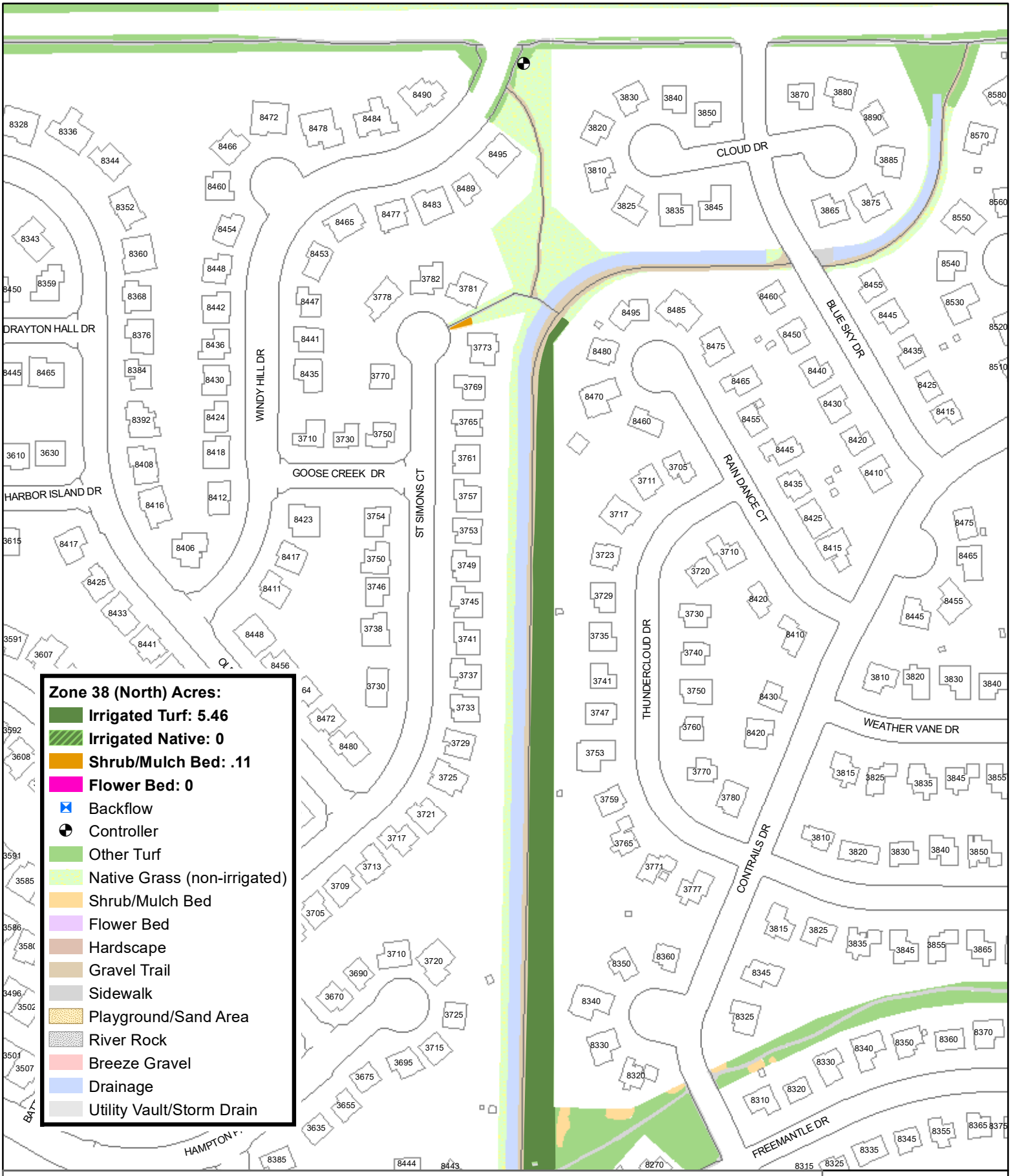
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0 125 250

Feet

9119 Charity Dr	Briargate Zone 37	.47 Acres
MAP VERSION: 01-19-2009	State Plane Coordinates Colorado Central Zone	NAD83 - US Survey Feet Vertical Datum - NGVD29

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8365 Cooper River Dr

Briargate Zone 38 (north)

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R26-091MZ

N

0 50 100 200

Feet

NAD83 - US Survey Feet
Vertical Datum - NGVD29
State Plane Coordinates Colorado Central Zone

Date: 1/6/2023

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8365 Cooper River Dr Briargate Zone 38 (south) 5.46 Acres

N SCALE: 1 " = 200 '
0 200
Feet

MAP VERSION: 01-19-2009

State Plane Coordinates
Colorado Central Zone
NAD83 - US Survey Feet
Vertical Datum - NGVD29

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R26-091MZ



N

SCALE: 1 " = 200 '

0 95 190

Feet

3519 Fairdawn Dr Briargate Zone 41 .09ac

MAP VERSION
DATE: 1/5/2023

State Plane Coordinates
Colorado Central Zone

NAD83 - US Survey Feet
Vertical Datum - NGVD29

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N

SCALE: 1 " = 200 '

0 95 190

Feet

3519 Fairdawn Dr Briargate Zone 41 .09ac

MAP VERSION DATE: 1/5/2023

State Plane Coordinates Colorado Central Zone

NAD83 - US Survey Feet Vertical Datum - NGVD29

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R26-091MZ

3515 Rocky Knoll Dr. Briargate Zone 40 .43 Acres

N

SCALE: 1 " = 200 '

0 200 Feet

MAP VERSION: 01-19-2009

State Plane Coordinates
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Vertical Datum - NGVD29

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N

SCALE: 1 " = 200 '

0 100 200
Feet

3595 Rockhampton Ct. Briargate Zone 42 .32ac

MAP VERSION
DATE: 1/5/2023

State Plane Coordinates
Colorado Central Zone

NAD83 - US Survey Feet
Vertical Datum - NGVD29

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ROCK ISLAND TRAIL 1



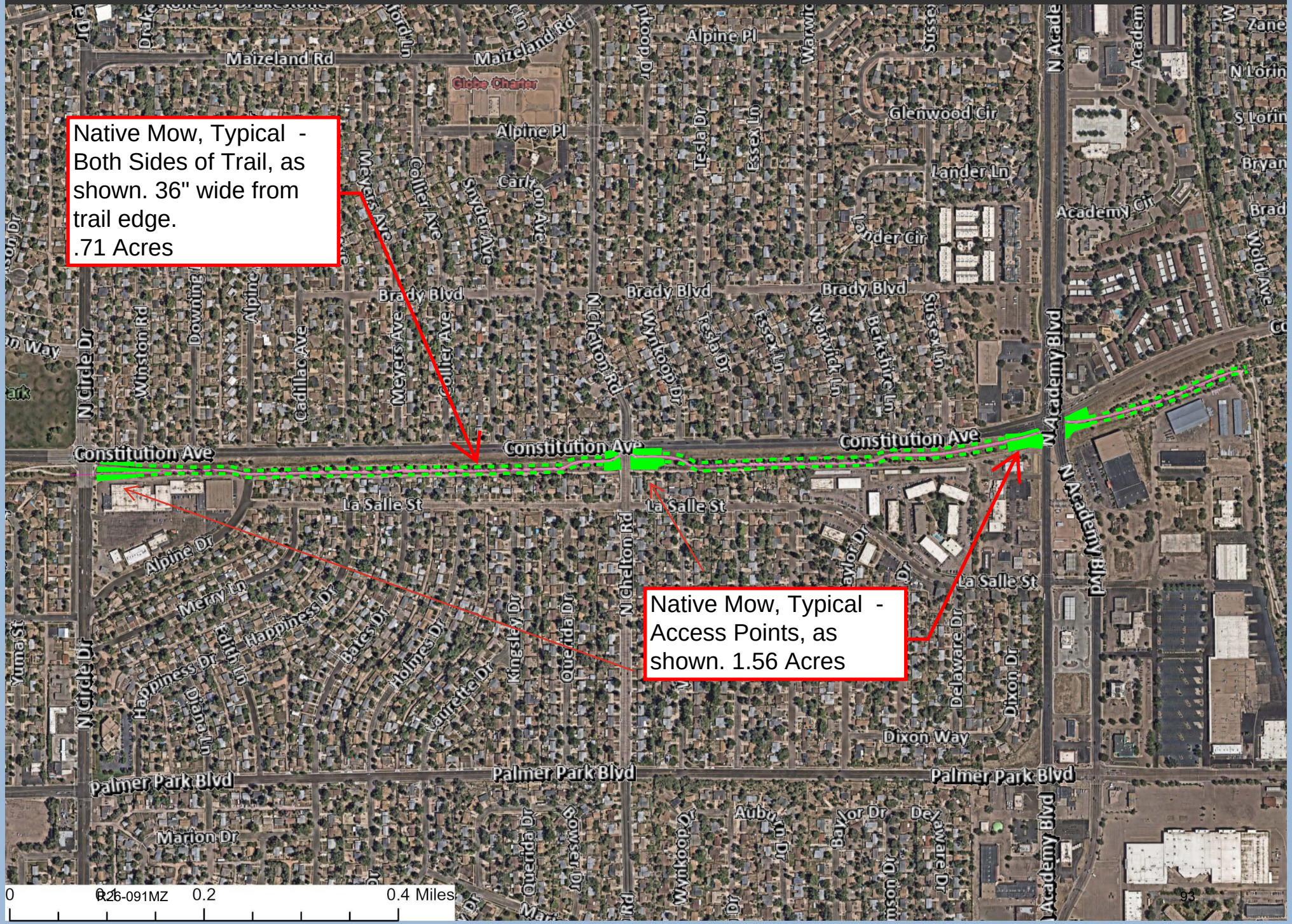
ROCK ISLAND TRAIL 2



ROCK ISLAND TRAIL 3



ROCK ISLAND TRAIL 4



SECTION VI – APPENDICES

6.0 APPENDICES

Appendix A Hourly Rate Sheet
Appendix B Scope of Work
Appendix C Fertilizer Application Specifications
Appendix D Weed Control Specification
Appendix E Pursell 120 Day Urea Specification
Appendix F PRCS Approved Pesticide List

APPENDIX A – PRICE SHEET

PLEASE SUBMIT YOUR HOURLY RATE SHEETS ON COMPANY LETTERHEAD. PLEASE LIST ALL HOURLY RATES AND INCLUDE HOURLY RATES FOR ANY SUBCONTRACTORS.

PLEASE ALSO INCLUDE THE FOLLOWING:

GENERAL LABOR RATES
EQUIPMENT ARRAY PRICING
COST PLUS MARKUP PERCENTAGE FOR MATERIALS AND PRODUCTS

APPENDIX B – SCOPE OF WORK

The City of Colorado Springs is looking for proposals for mowing and mowing related services. These services include mowing of turf and native (irrigated and unirrigated) areas as well as trashing, fertilizing, aerating, and weed control. The areas of these different mowing service types are within parks, cemeteries, golf courses, maintenance district ROW's, greenbelts, urban trails, trailheads, access points, landslide properties, and other city owned properties. The purpose of this Scope of Work is to have vendors that we can easily solicit and issue task orders for areas where we need these services. The solicitation for services will include but not limited to the detailed scope of work, schedules, maps, and pricing sheets. These task orders, for example, could be an entire SIMD (such as Briargate, Norwood, Stetson Hills), an entire parks district, a grouping of multiple urban trails, etc.

Parks Staff will reach out to all awarded vendors to obtain quotes for specific Parks Mowing Projects and selected vendor will be issued a task order to complete the work. Any pricing requests will include a price sheet and maps.

APPENDIX C – FERTILIZER APPLICATION SPECIFICATION

FOLLOWS THIS PAGE

CITY OF COLORADO SPRINGS PARKS - FERTILIZER APPLICATION SPECIFICATIONS

Coordination

- Fertilizer to be supplied by contractor. Fertilizer must meet minimum 120 day slow controlled release per attached spec sheet. Final product selection must be approved by parks supervisor.
- The contractor shall submit a schedule identifying the times and dates in which fertilizer will be applied that must align with the timing requested by the Parks Department. Modifications to this schedule shall be requested in writing and approved in advance by the division supervisor.
- Coordination with division supervisors shall be done no later than one week before the scheduled application.
- Immediately following the completion of each park site, the division supervisor, or a member of their staff, shall be notified. Contractor is responsible for removing any fertilizer from impervious surfaces.

Storage

- While not in use, product(s) shall be stored in a secured location and product be kept dry by appropriate means to prevent moisture damage.

Transportation

- While in transport, all reasonable accommodations shall be taken to keep the product dry, either by being covered or in an enclosed vehicle.
- In the event that a product is damaged due to negligence, the contractor shall replace the product at no additional charge to the city.

Equipment

- All equipment shall be operated in a safe manner consistent with the manufacturers' recommendations, with all original manufacturer installed safety devices in place and operational.
- Equipment shall be operated at a speed and in a manner that poses no danger to the public.
- Equipment shall be in good repair with preventative maintenance practices being performed in accordance with manufacturer recommendations.
- Acceptable fertilization equipment shall be handheld rotary spreaders, manual push spreaders, ride-on broadcast spreaders, tractor mounted or pull-behind spreaders or a combination of all listed options.
    - Drop spreaders shall not be used unless requested.
- Fertilizer hoppers shall be equipped with moisture proof covers to prevent damage to the product or spillage while on uneven surfaces.
- Tires should be 'turf type' to prevent damage to turf grass.

Calibration

- All application equipment shall be calibrated by a trained professional.
- Calibration shall be performed **before** any fertilizer is to be applied to ensure the desired rate of fertilizer is evenly and accurately applied.
- All application equipment shall be calibrated for each specific product to account for differences in particle size, density, active ingredient, and nutrient content.
- All application equipment shall be calibrated on a similar surface (turfgrass) to the target application area.
- If using multiple spreaders, spreaders shall be calibrated separately for each operator.
- After each site is completed, the amount of fertilizer applied shall be reconciled against known needed quantities.

Application

- Application technique may vary due to equipment used; however, fertilizer shall be applied to provide uniform coverage to all specified areas at the requested application rate.
- Consistent ground speed shall be maintained throughout the application to maintain optimum application uniformity.
- Application equipment shall be tailored to the target area; generally smaller equipment shall be used to fertilize smaller areas and vice versa.
- Application equipment shall be operated in a straight direction of travel, when possible, to avoid misapplication.
- The amount of overlap between passes shall be based on the effective swath width, which shall be determined during the calibration process to prevent overapplication, skips or stripping.
- If fertilizer contains clumps due to moisture, clumps shall be broken up while wearing proper personal protective equipment to prevent cloggage of the hopper ports. If clumps are unable to be broken up, they shall be discarded.
- Any fertilizer applied to impervious surfaces within the boundary of City owned property will be removed by Park personnel and will not be the responsibility of the contractor.
- Hoppers shall be refilled over an impervious surface such as concrete, asphalt, or a tarp.
    - If fertilizer is inadvertently spilled while loading, the product shall be immediately removed and disposed of in a proper manner.
    - During application, hoppers shall not be allowed to become completely empty, rather, additional fertilizer shall be added with a few pounds remaining in the hopper.
- If fertilizer is inadvertently spilled within a turfgrass or native grass area during the application, a shop-vac shall be used to completely remove the product to prevent plant damage. Upon occurrence, a City representative shall be notified immediately.
- In the event that fertilizer is misapplied, the contractor shall be responsible for remediating the problem at no additional cost to the City, only after consulting with a City representative on appropriate corrective action.
- Applying fertilizer into drainage ways or curb pans is strictly prohibited. Further, a sufficient buffer shall be exercised to eliminate the possibility of surface water contamination.
- Fertilizer applications shall be delayed or rescheduled when impending weather events, such as rain, snow, or high winds, are anticipated.

- Fertilization shall not be performed during periods of high public usage.

Trees and Shrubs

- Contractor shall take all reasonable and necessary steps to protect trees from damage caused during normal maintenance activities. City shall notify contractor of all claims for damage to trees.
- Tree damage shall not be time sensitive; rather new tree damage can be identified within the current season and liquidated damages shall be assessed regardless of when damage occurred within that growing season.
- Tree damage shall be recognized/ identified as that occurring from aeration equipment, support vehicles, branch damage caused by aerating underneath low hanging branches, root damage from tires or aeration tines or soil compaction while aerating in wet soil.
- Contractor shall be liable to the City for the appraised value of the tree based upon International Society of Arboriculture appraisal standards per section 4.4.103 of the City code.

Supervision of Crew

- Contractor shall provide supervision of all work crews at all times. Personal supervision is not required given that adequate and immediate communication with the Contractor is available at all times.
- Each work crew shall have a designated person on the work site that has the authority to respond to inquiries about work details or priorities.
- The Contractor shall not be permitted to park trucks, trailers, or other equipment on the turf without prior written approval by the Division supervisor.

Employee Wear

- All employees must wear a DOT approved class II safety vest.
- All employees must wear proper personal protective safety equipment during fertilization operations.
- All employees must wear clothing with company identification.

Other

- Any structures, property, plant material or irrigation system components damaged by fertilization activities of the contractor or the contractors' representatives must be reported to the department and repaired immediately upon occurrence at the contractors' expense or, if approved by the District Supervisor, by Parks and Recreation staff on a time and materials basis and will be subsequently deducted from the contractor's payment.
- All operations shall take place on weekdays, between 7 AM and 5PM, and shall not interfere with any scheduled activities or park users. Unanticipated events or circumstances may impact the ability for fertilization to occur during the Monday to Friday window. Aeration may occur on weekends only with the approval of the Division supervisor.
- Acreage totals found on maps are approximations for estimation purposes only. Actual acreage totals may vary; it is the responsibility of the contractor, if so desired, to verify actual acreage.
- Any damage or hazardous conditions observed in any park area shall be reported immediately to the District Supervisor for repair by parks staff.

APPENDIX D – WEED CONTROL SPECIFICATION

FOLLOWS THIS PAGE

CITY OF COLORADO SPRINGS PARKS - WEED CONTROL SPECIFICATIONS

Contractors shall follow all laws and regulations set forth by the EPA, Colorado Department of Agriculture, and the pesticide label.

Safety

- All commercial applicators shall be licensed through the Colorado Department of Agriculture.
- All applicators shall wear appropriate PPE at all times.
- Applications shall not be made during times of high public use. Contractors shall consult the City supervisor to determine appropriate times to treat these areas.
- Contractors shall not make applications during windy conditions or when rain in imminent and should consult the pesticide label for limitations.
- Contractors shall notify all persons on the pesticide sensitive registry per the Pesticide Applicators Act 30-10-112.
- Contractors shall only apply products on the PRCS 'Approved Pesticide' list

Equipment

- All application equipment shall be properly calibrated at all times.
- All equipment shall be operated in a safe manner consistent with the manufacturers' recommendations, with all original manufacturer installed safety devices in place and operational.
- Equipment shall be operated at a speed and in a manner that poses no danger to the public.
- Equipment shall be in good repair with preventative maintenance practices being performed in accordance with manufacturer recommendations.
- Nozzles should be replaced periodically.
- Equipment that is light weight and allows for low-volume application is preferred.
- Foam marking systems should be utilized to minimize skips or excessive overlap.

Site Conditions

- Applications shall not be performed during periods of turfgrass stress or excessive heat.

Coordination and Posting

- Contractor shall perform pesticide applications at the predetermined dates specified by a City of Colorado Springs Parks, Recreation and Cultural Services supervisor. It is understood that the application dates are weather dependent but shall be followed as closely as possible. In an instance that an application is delayed or performed at a date other than specified by a City supervisor, the City supervisor shall be notified of such changes.

- City supervisors shall coordinate all pesticide applications one week ahead of the scheduled application date. This is for the purpose of posting application information to the City website using the following formatting:
    - Location:
    - General Area Treated:
    - Trade Name:
    - Active Ingredients:
    - Target Pest:
    - Any application where signage is required to be placed at conspicuous points of entry consistent with the Pesticide Applicators Act shall be posted to the City webpage. By rule, this would exclude applications performed by internal City employees or applications that fall under the Industrial Right-of-Way or Rangeland category.
    - In addition, spot treatment applications which are performed contractually and are not coordinated by a City supervisor will not be posted to the City webpage.

Signage

- Appropriate signage shall be used for **ALL pesticide applications** consistent with the Pesticide Applicators' Act.
- The chemical name and date shall be legibly written in permanent marker or a sticker with this information be placed on the back of each sign.
- Signage shall be placed **PRIOR** to the application being made to any conspicuous points of entry including areas adjacent to roadways or parking lots where people may access the site.
- City technicians will remove signage one business day after application.
- City technicians shall evaluate all signage for completeness and location appropriateness. Any inconsistencies will be reported, and the Contractor will be notified.

Record Keeping

- Contractor shall use the "Notification of Pesticide Application" forms provided by the City of Colorado Springs Parks and Recreation Department.
- All completed "Notification of Pesticide Application" forms shall be promptly returned to the City supervisor no more than 2 business days after the application is made.
- Contractor shall retain these documents for a period no shorter than 3 years.

Communication

- Contractor shall provide periodic updates to City supervisor to communicate the status of past and pending applications.

Trees and Shrubs

- Contractor shall take all reasonable and necessary steps to protect trees from damage caused during weed control activities. City shall notify contractor of all claims for damage to trees.

- Tree damage shall not be time sensitive; rather new tree damage can be identified within the current season and liquidated damages shall be assessed regardless of when damage occurred within that growing season.
- Tree damage shall be recognized/ identified as that occurring from spray equipment, support vehicles, branch damage caused by driving underneath low hanging branches, root damage from tires.
- Contractor shall be liable to the City for the appraised value of the tree based upon International Society of Arboriculture appraisal standards per section 4.4.103 of the City code.

Supervision of Crew

- Contractor shall provide supervision of all work crews at all times. Personal supervision is not required given that adequate and immediate communication with the Contractor is available at all times.
- Each work crew shall have a designated person on the work site that has the authority to respond to inquiries about work details or priorities.
- The Contractor shall not be permitted to park trucks, trailers, or other equipment on the turf without prior written approval by the District Supervisor.

Employee Wear

- All employees must wear a DOT approved class II safety vest.
- All employees must wear proper personal protective safety equipment during maintenance operations.
- All employees must wear clothing with company identification.

Other

- The Contractor shall submit a schedule identifying the dates weed control will be performed. Modifications to this schedule must be requested in writing and approved in advance by the Department.
- Any structures, property, plant material or irrigation system components damaged by weed control activities of the contractor or the contractors' representatives must be reported to the department and repaired immediately upon occurrence at the contractors' expense or, if approved by the District Supervisor, by Parks and Recreation staff on a time and materials basis, and will be subsequently deducted from the contractor's payment
- All operations shall take place on weekdays, between 7 AM and 5PM, and shall not interfere with any scheduled activities or park users. Unanticipated events or circumstances may impact the ability for weed control to occur during the Monday to Friday window. Weed control may occur on weekends only with the approval of the District Supervisor
- Acreage totals found on maps are approximations for estimation purposes only. Actual acreage totals may vary; it is the responsibility of the contractor, if so desired, to verify actual acreage.
- Any damage or hazardous conditions observed in any park area shall be reported immediately to the District Supervisor for repair by parks staff.

APPENDIX E – PURSELL 120 DAY UREA SPECIFICATION

FOLLOWS THIS PAGE

PURSELL
ADAPTIVE NUTRIENT TECHNOLOGY

43-0-0

Polymer Coated Urea

Guaranteed analysis

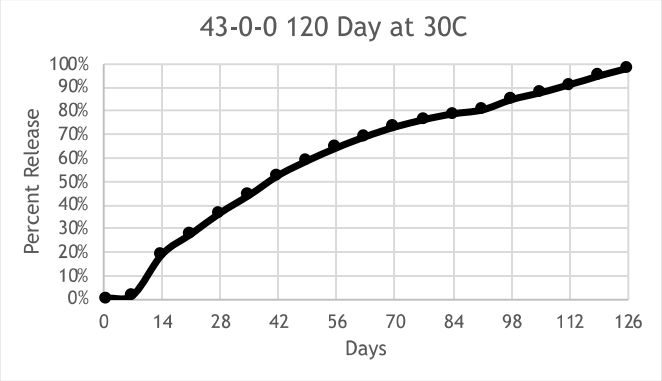
Total Nitrogen (N)*.....43%
43% Urea Nitrogen

Derived From Polymer Coated Urea

*43% Control Release Urea Nitrogen from Polymer Coated Urea

Information regarding the contents and levels of metals in this product is available on the internet at http://www.aapfco.org/metals.html

Manufactured by:
Pursell Agri-Tech
501 East 3rd Street
Sylacauga, AL 35150
FL# F002525



Temperature Conversion		
60°F (15°C)	72°F (22°C)	**87°F (30°C)**
275-310 Days	170-195 Days	**115-125Days**
Longevity estimates at Average Temperature (°F/°C)		

Information about the components of this lot of fertilizer may be obtained by contacting Pursell Agri-Tech LLC. Use in accordance with recommendations of a qualified individual or institution, such as, but not limited to a certified crop advisor, agronomist, university crop extension publication, or apply according to recommendation in your approved nutrient plan.

Observe proper handling and personnel safety practices. Wash hands after handling, wear eye protection. Store away from incompatible materials. Dispose of waste and residues in accordance with local authority and environmental requirements. For additional information, see Safety Data Sheet (SDS) for this product.

Pursell Agri-Tech specifically disclaims any responsibility or liability relating to the use of suggested products and recommendations and shall under no circumstances be liable for any special, incidental or consequential damages which may arise from such use.

PURSELL
AGRI-TECH
SINCE 1904

Mission: Develop and commercialize next generation fertilizers to increase yields, enhance human nutrition, and improve environmental impact to water and climate.

APPENDIX F – PRCS APPROVED PESTICIDE LIST

FOLLOWS THIS PAGE

PARKS, RECREATION and CULTURAL SERVICES PESTICIDE LIST
APPROVED PESTICIDES

As of June 24, 2020

Pesticide	EPA Reg. No.	EVS Approval Date
Algae All 60	5185-339	10/24/2003
Altosid XR	2724-421	2/6/2006
Aquacide		
Astro Insecticide	279-3141	6/9/2003
Axxe broad spectrum herbicide (BioSafe Systems)	70299-23	5/8/2019
Banrot	58185-10	
Barricade 4FL (Syngenta)	100-1139	2/19/2013
Barricade 65WG (Syngenta)	100-834	2/19/2013
Barrier	2217-675	12/24/2001
Cambistat 2SC	74779-3	10/14/2003
Capstone (Corteva)	62719-572	6/24/2020 parks
Chaser	34704-928	10/24/2003
Cheetah Pro (Nufarm Americas)	228-743	4/24/2020 parks
Curtail	62719-48	12/24/2001
Confront	62719-92	5/24/2018 parks
Desperado (Wilbur-Ellis)	2217-1052-2935	6/24/2020 Parks
Dimension 2EW (DOW)	62719-542	4/24/2020 parks
Dismiss Turf Herbicide (FMC)	279-3295	5/8/2019
Down and Out	706-83	From Golf Courses Approved List
Drexel Imitator Aquatic	19713-623	11/1/2018 parks
E-2/Escalade2 (Nufarm Americas, Inc)	228-442	6/24/2020 parks
Esplanade 200 SC (Bayer)	432-1516	4/24/2020 parks
Finale Herbicide (Bayer)	432-1229	5/8/2019
Florel	54705-8	4/29/2019
Freelexx	62719-634	5/24/2018 parks
Gallery SC (DOW)	62719-658	4/24/2020 parks
Garlon 3A	62719-37	12/24/2001
Garlon 4	62719-40	3/4/2002
Glyphosate 41% (aka Helosate Plus)	74530-43	6/23/2008
Glyphosate plus	66222-176	4/3/2007
Gnatrol	73049-56	
Hardball (Helena Chemical Co.)	5905-549	5/8/2019
Hi-Yield Ant Killer	53883-194-7401	2/4/2002
Lesco Three-Way	10404-43	
NativeKlean (Corteva)	62719-730	6/24/2020
Mantra 1G Greenhouse & Nursery Insect.	228-523	6/23/2008

Milestone Herbicide (specialty)	62719-519	2/16/2006
Ornamec over the Top	2217-728	

Pesticide	EPA Reg. No.	EVS Approval Date
Ortho Groundclear Complete Vegetation Killer (Triox)	239-2657	10/24/2003
Ortho Hornet & Wasp Killer 6	1021-1780-239	
Ortho Hornet & Wasp Killer 7	1021-1780-239	
Ortho Weed B Gon weed killer	228-424-239	
Pathway	62719-31	10/24/2003
Primo Maxx	100-937	10/24/2003
ProClipse 65WDG	228-434	2/19/2013
Purell Professional Surface Disinfectant	84368-1-8415	7/11/2019
Quali-Pro Oryzalin 4 Pro	53883-369	6/23/2008
Round Up Quick Pro	524-535	From Gulf Courses Approved List
Quicksilver T&O Herbicide	279-3265	5/24/2018
Quin-way 1.5L (Lesco)	42750-224-10404	4/24/2020 parks
Reward Landscape and Aquatic herbicide (Syngenta)	100-1091	5/8/2019
Roundup Pro	524-475	10/24/2003
Snake-A-Way	58630-1	10/24/2003
Snapshot 2.5 TG	62719-175	4/24/2020 parks
Speedzone Broadleaf Herbicide	2217-833	2/6/2006
Sucker Stopper RTU	5481-460-54705	2003 (Community Centers)
Sure Guard	59639-120	9/18/2009
Surflan AS	70506-43	10/24/2003
Surge Broad Leaf Herbicide For Turf	2217-867	5/24/2018 Parks
Scythe Herbicide (Gowan)	10163-325	5/8/2009
Specticle Flo (Bayer)	432-1518	4/24/2020 parks
Tenacity (Syngenta)	100-1267	5/8/2019
Tengard SFR One-shot		2/2/2010
Trimec Classic Brand	2217-543	From Golf Courses Approved List
Trimec 992	2217-656	10/24/2003
Truban	58185-7	
Turf Builder w/ Plus 2 Weed Control	538-282 or 538-28	10/24/2003
Turflon Ester Ultra (DOW)	62719-566	4/24/2020 parks
T Zone SE (PBI/Gordon)	2217-976	4/24/2020 parks
Veetolex CG	73049-20	2/6/2006
Wood's Rooting Compound	43905-1	

CANCELLED PESTICIDES

Cancelled Pesticides	EPA Reg. No.	EVS Comments
Bacticide 45	10352-22-66114	This products active ingredient is only good for 6 to 12 mths.
Diazinon		Use this product for its intended use until it is gone.
Dursban	239-2633	Use this product for its intended use until it is gone.
Farm and Home	134-6	Use this product for its intended use until it is gone.
Green Light Plus	432-684-869	Registered in CO only thru 12/31/01. Use up.
Herbicide A-4D 2,4D	42750-13	Use this product for its intended use until it is gone.
Roach and Ant Killer	7754-43	Use this product for its intended use until it is gone.
Sevimol 4	264-321	Use this product for its intended use until it is gone.

EXEMPT PESTICIDES FROM PESTICIDE PROCEDURE

Exempt Pesticides	EPA Reg. No.	EVS Comments
Pulsar Plus Dry Chlorinator Briquettes	1258-1179	
Calcium Hypochlorite Accu-Tabs	748-275	
Induclor	748-239	
Zappit	748-217	
FreeStyle Calcium Hypochlorite Granular 65	748-217-148	
HTH Brominating Tablets	6836-116-1258	
HTH Chlorinating Tablets	1258-1042	
Chem Aqua 777		
Aquasperse		
Chem Aqua 15000		
Chem Aqua 12000		
Coolcide	1448-212-66114	EVS added to list 12/8/03